Zimbabwe

Civil Aviation Act

Chapter 13:16

Legislation as at 31 December 2024

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Zimbabwe

Civil Aviation Act

Chapter 13:16

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[Amended by Civil Aviation Amendment Act, 2018 (Act 10 of 2018) on 20 July 2018]
[Amended by Civil Aviation Amendment Act, 2024 (Act 8 of 2024) on 31 December 2024]

[Act 7/1998, 22/2001 (s. 4), 5/2011 (s. 7)]

AN ACT to establish the Civil Aviation Authority of Zimbabwe and to provide for its functions; to provide for the appointment and functions of a board of the Authority; to make provision for the control, regulation and orderly development of aviation within Zimbabwe; and to provide for matters connected with or incidental to the foregoing.

Part I – Preliminary

1. Short title and date of commencement

This Act may be cited as the Civil Aviation Act *[Chapter 13:16]*.

2. Interpretation

(1) In this Act—

"**accident**" means any fortuitous or unexpected event by which the safety of an aircraft or any person in or on an aircraft is threatened;

"**act of unlawful interference**" means any act, or attempted act that, jeopardises the safety of civil aviation, including but not limited to—

(a) the unlawful seizure of any aircraft;

(b) the destruction of an aircraft in service;

(c) hostage-taking on board or aircraft or on any aerodrome;

(d) the forcible intrusion on board an aircraft, at an airport or on the premises of an aeronautical facility;

(e) the introduction on board an aircraft or at an airport of a weapon or hazardous device or any material with intent to use it for criminal purposes;

(f) the use of an aircraft in service for the purpose of causing death, serious bodily injury, or serious damage to property or the environment; or

(g) the communication of false information that jeopardises the safety of an aircraft in flight or on the ground, of passengers, crew, ground personnel or the general public, at an airport or on the premises of a civil aviation facility;

[definition of "act of unlawful interference" inserted by section 2(c) of Act 8 of 2024]

“**aerodrome**” means an area of land or water that is designed, equipped, set apart or commonly used for affording facilities for the landing and departure of aircraft. and includes—

(a) any buildings in the area; and

(b) any area, whether on the ground, on the roof of a building or elsewhere, which is designed, equipped or set apart for affording facilities for the landing and departure of aircraft capable of descending or climbing vertically;

“**aircraft**” means any machine that can derive support in the atmosphere from the reactions of the air other than the reactions of the air against the earth’s surface;

[definition of “aircraft” substituted by section 2(a) of Act 8 of 2024]

"**air navigation**" means the science and technology of determining the position of an aircraft with respect to the surface of the earth and accurately maintaining a desired course;

[definition of "air navigation" inserted by section 2(a) of Act 10 of 2018]

"**air navigation facility**" means any facility used in, available for use in, or designed for use in aid of, air navigation, including airports, landing areas, lights, any apparatus or equipment for disseminating weather information, for signalling, for radio directional finding, or for radio or other electromagnetic communication, and any other structure or mechanism having a similar purpose for guiding or controlling flight in the air or the landing and take-off of aircraft;

[definition of "air navigation facility" inserted by section 2(a) of Act 10 of 2018]

“**air navigation services**” means air traffic services; communication, navigation and surveillance services; meteorological services for air navigation; aeronautical information services; and aeronautical search and rescue services and ancillary procedures to air navigation services and aircraft operations;

[definition of “air navigation services” inserted by section 2(c) of Act 8 of 2024]

"**air operator**" means any organisation which undertakes to engage in domestic commercial air transport or international commercial air transport, whether directly or indirectly or by a lease or any other arrangement;

[definition of "air operator" inserted by section 2(a) of Act 10 of 2018]

"**air transport**" means any aspect of civil aviation concerned with the commercial and non-commercial transport of persons and goods by air;

[definition of "air transport" inserted by section 2(a) of Act 10 of 2018]

“**Annex**” means an Annex to the Chicago Convention or an amendment of such an annex, adopted in accordance with that Convention;

“**Authority**” means the Civil Aviation Authority of Zimbabwe established by section four and, in relation to any function exercisable by the Authority by or in terms of this Act, includes an employee of the Authority or other person generally or specially authorized by the Board to exercise that function;

“**authorised officer**” means an employee of the Authority designated in terms of section 26(3)(a) and includes an authorised person;

[definition of “authorised officer” inserted by section 2(b) of Act 8 of 2024]

"**authorised person**" means a person designated in terms of section 26(3)(b) with delegated authority to perform aviation safety and security supervision tasks, including evaluations, inspections and investigations, on behalf of the State;

[definition of "authorised person" inserted by section 2(a) of Act 10 of 2018 and substituted by section 2(b) of Act 8 of 2024]

“**authorized person**”, in relation to any act or function, means a person authorized by the Minister, or by a person designated by the Minister, to do the act or exercise the function;

"**aviation safety surcharge**" means the surcharge levied in terms of section 59A;

[definition of "aviation safety surcharge" inserted by section 2(a) of Act 10 of 2018]

“**aviation security**” means safeguarding civil aviation against acts of unlawful interference;

[definition of “aviation security” inserted by section 2(c) of Act 8 of 2024]

“**Board**” means the Board of the Authority constituted in terms of section ten;

“**cargo**” means any property carried on an aircraft other than mail, stores and accompanied or mishandled baggage;

[definition of “cargo” inserted by section 2(c) of Act 8 of 2024]

“**Chicago Convention**” means—

(a) the Convention on International Civil Aviation done at Chicago on the 7th December, 1944; and

(b) the Protocols amending that Convention; and

(c) the Annexes to that Convention relating to international standards and recommended practices, adopted in accordance with that Convention;

"**Chief Investigator of Accidents**" means the person appointed as such in terms of section 55;

[definition of "Chief Investigator of Accidents" inserted by section 2(a) of Act 10 of 2018]

"**civil aviation**" means the non-military use of aircraft;

[definition of "civil aviation" inserted by section 2(a) of Act 10 of 2018]

"**civil aviation industry**" means all persons in Zimbabwe who are engaged in the business of commercial air transport and associated services;

[definition of "civil aviation industry" inserted by section 2(a) of Act 10 of 2018]

“**civil penalty**” means a penalty governed by the provisions of the Third Schedule;

[definition of “civil penalty” inserted by section 2(c) of Act 8 of 2024]

“**committee**” means a committee of the Board;

"**Director-General**" means the Director-General of the Authority appointed in terms of section 24;

[definition of "Director-General" inserted by section 2(a) of Act 10 of 2018]

“**General Manager**” *[definition of "General Manager" repealed by section 2(b) of Act 10 of 2018]*

“**International Civil Aviation Organization**” means the International Civil Aviation Organization formed by the Chicago Convention;

"**investigator**" means an accident investigator so designated in terms of section 55;

[definition of "investigator" inserted by section 2(a) of Act 10 of 2018]

“**locally registered aircraft**” means an aircraft registered in Zimbabwe;

“**member**” means a member of the Board, including the chairman and deputy chairman of the Board;

“**Minister**” means the Minister of Transport and Energy or any other Minister to whom the President may, from time to time, assign the administration of this Act;

"**National Civil Aviation Security Committee**" means the Committee established in terms of section 44B;

[definition of "National Civil Aviation Security Committee" inserted by section 2(a) of Act 10 of 2018]

"**navigation safety**" comprehends all measures for securing the safety of aircraft and persons not restricted to safeguarding against acts of unlawful interference;

[definition of "navigation safety" inserted by section 2(c) of Act 8 of 2024]

"**occurrence**" means any incident involving an aircraft as a result of which—

(a) a person is killed or injured; or

(b) any property is damaged or destroyed; or

(c) the safety of any person or property is threatened; and includes an accident;

"**owner**", in relation to an aircraft or aerodrome, includes—

(a) the person in whose name the aircraft or aerodrome is registered; and

(b) any person who is acting as agent in Zimbabwe for the person in whose name the aircraft or aerodrome is registered, where that latter person is outside Zimbabwe; and

(c) any person by whom the aircraft or aerodrome is hired for the time being;

"**passenger**" means any person being conveyed by an aircraft and who is not a member of the crew;

[definition of "passenger" inserted by section 2(c) of Act 8 of 2024]

"**safety and security oversight inspector**" or "inspector" means an employee of the Authority appointed in terms of section 26;

[definition of "safety and security oversight inspector", previously "inspector" substituted by section 2(c) of Act 10 of 2018]

"**security**", in relation to the Authority, includes a share, debenture, bond or other security issued by the Authority, whether or not it constitutes a charge on the Authority's assets.

"**security programmes**" means an integrated set of regulations and activities performed by the State aimed at improving safety and efficient delivery of aviation services;

[definition of "security programmes" inserted by section 2(a) of Act 10 of 2018]

"**technical standard**" means a standard published under the authority of the Director-General that additionally specifies the technical requirements, data, information or guidance relating to an acceptable means of compliance with such standard;

[definition of "technical standard" added by section 2(c) of Act 8 of 2024]

[subsection (1), previously unnumbered, numbered by section 2(d) of Act 8 of 2024]

(2) Anything that the Authority is empowered to do under this Act shall, unless this Act or the content otherwise requires, be done in the name or on behalf of the Authority by the Director-General.

[subsection (2) added by section 2(d) of Act 8 of 2024]

3. Application of Act and Chicago Convention

(1) Subject to any regulations made in terms of section seventy-nine, this Act and the Chicago Convention shall apply to—

(a) all aircraft whilst in or over Zimbabwe; and

(b) all locally registered aircraft and personnel wherever they may be.

(2) For the purpose of paragraph (b) of subsection (1), the personnel of an aircraft include the commander or other person in charge of the aircraft and all members of its crew.

(3) Such provisions of this Act as may be prescribed shall not apply to—

(a) aircraft or aerodromes belonging to, or for the time being used exclusively by, the Defence Forces; or

(b) aircraft belonging to or in the service of any foreign government, whilst use exclusively for military purposes.

Part II – Establishment, objects and functions of Civil Aviation Authority of Zimbabwe

4. Establishment of Civil Aviation Authority of Zimbabwe

There is hereby established an authority, to be known as the Civil Aviation Authority of Zimbabwe, which shall be a body corporate capable of suing and being sued in its own name and, subject to this Act, of performing all acts that bodies corporate may by law perform.

5. Objects of Authority

The objects of the Authority are—

(a) to promote and regulate civil aviation safety and security and provide related training; and

(b) to develop air transport; and

(c) to establish and maintain air navigation facilities and provide air navigation services and related training; and

(d) to foster the development of the civil aviation industry and oversee its activities; and

(e) to ensure compliance with this Act and the Chicago Convention and discharge in accordance with best practices and maximum efficiency the regulatory function assigned to it by this Act; and

(f) to provide advice to Government on all matters related to domestic and international civil aviation.

[section 5 substituted by section 3 of Act 10 of 2018]

6. Functions of Authority

(1) Subject to this Act, the functions of the Authority shall be—

(a) to control and regulate the operation of aircraft in and over Zimbabwe;

(b) to provide air navigation services, including air traffic control, in Zimbabwean airspace and in any areas outside Zimbabwe for which the Authority, pursuant to international arrangements, is responsible for providing such services;

(c) to provide aviation meteorological services in relation to Zimbabwe;

(d) to provide aeronautical information services with respect to aerodromes, air traffic control and facilities, meteorological services, hazards to air navigation and such other matters relating to air traffic as may be prescribed or as the Authority may consider appropriate;

(e) to ensure the maintenance of safety standards prescribed by or under this Act in relation to personnel, aircraft and aerodromes;

(f) to provide technical services to the Government or any other person for the design, installation, maintenance and modification of electronic, radio and other equipment used in the provision of air navigation and communication services;

(g) to investigate the circumstances surrounding all accidents involving aircraft and, where appropriate, to take such measures as are necessary to prevent their recurrence;

(g1) to investigate occurrences, accidents and incidents other than occurrences and accidents involving aircraft, and to take such measures as are necessary to prevent their recurrence;

[paragraph (g1) inserted by section 3(a) of Act 8 of 2024]

(h) *[paragraph (h) substituted by section 4 of Act 10 of 2018 and deleted by section 3(b) of Act 8 of 2024]*

(i) to exercise the functions conferred upon it in terms of this Act in relation to—

(i) the registration of aircraft; and

(ii) aviation security; and

(iii) search and rescue services provided in relation to aircraft and aviation; and

(iv) fire-fighting services provided at aerodromes; and

(v) the training and licensing of persons engaged in the inspection, supervision, repair, overhaul, maintenance, operation and use of aircraft; and

(vi) the design and construction of aircraft;

(vii) the licensing of aerodromes;

(viii) operations of aircraft.

[subparagraph (viii) added by section 3(c) of Act 8 of 2024]

(j) to exercise any other function that may be conferred or imposed on the Authority by or in terms of this Act or any other enactment.

(2) For the better exercise of its functions the Authority shall have power, subject to this Act, to do or cause to be done, either by itself or through its agents, all or any of the things specified in the First Schedule, either absolutely or conditionally and either solely or jointly with others.

7. Policy directions as to exercise of Authority's functions

(1) Subject to subsections (2) and (3), the Minister may give the Board such directions of a general character relating to the policy which the Authority is to observe in the exercise of its functions, as the Minister considers to be requisite in the national interest.

(2) Before giving the Board a direction in terms of subsection (1), the Minister shall inform the Board, in writing, of the proposed direction and the Board shall, within thirty days or such further period as the Minister may allow, submit to the Minister, in writing, its views on the proposal and the possible effects which the proposal may have on the finances and other resources of the Authority.

(3) Where the Board maintains, in views submitted to the Minister in terms of subsection (2), that a proposed direction will have a material effect on the Authority's finances, the Minister shall not proceed to give the Board the direction until he has consulted the Minister responsible for finance.

(4) The Board shall, with all due expedition, comply with any direction given to it in terms of subsection (1).

(5) When any direction has been given to the Board in terms of subsection (1), the Board shall ensure that the direction and any views it has expressed thereon in terms of subsection (2) are set out in the Authority's annual report.

8. Execution of contracts and instruments by Authority

An agreement, contract or instrument approved by the Board may be entered into or executed on the Authority's behalf by any person generally or specially authorized by the Board for that purpose.

9. Reports, plans and programmes of Authority

(1) In addition to any annual report which the Authority may be required to submit to the Minister in terms of the Audit and Exchequer Act *[Chapter 22:03]*, the Board shall submit to the Minister as soon as possible after the end of each financial year a report which shall contain—

(a) a business plan for the next five years, setting out—

(i) a description of any substantial new scheme or project for the development of any undertaking of the Authority, and a progress report on any existing such scheme or project; and

(ii) the fees and charges proposed to be levied in the ensuing financial year for each separate activity carried on or service provided by the Authority; and

(iii) the estimated costs of carrying on or operating each type of activity or service in the ensuing financial year; and

(iv) a summary of the Authority's operational and financial performance in the previous financial year, indicating the extent to which the business plan for that year was adhered to and the reasons for any significant deviation from it; and

(v) the financial results for the previous financial year; and

(vi) any circumstances that may significantly affect the performance of the Authority in the period covered by the business plan; and

(vii) criteria by which the Authority's performance in implementing the plan may be assessed; and

(viii) any other information that the Minister may require to be included in the plan or that the Board may wish to include in it; and

(b) an investment programme for the next five years, setting out—

(i) a brief technical description of the programme; and

(ii) where applicable, the current project status of each aspect of the programme; and

(iii) the manner in which each aspect of the programme is to be implemented, in particular with regard to the resources needed for its implementation and its co-ordination with any other project or proposal; and

(iv) the manner in which the programme affects the business plan; and

(v) an estimate of the cost of each aspect of the programme, specifying the foreign currency, if any, needed to implement it; and

(vi) the period within which each aspect of the programme is to be completed; and

(vii) the economic and other benefits that are anticipated from the programme; and

(viii) where possible, criteria by which the Authority's performance in implementing the programme may be assessed; and

(ix) any other information that the Minister may require to be included in the programme or that the Board may wish to include in it.

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(2) In addition to the reports referred to in subsection (1), the Board—

(a) shall submit to the Minister any other report, and provide him with any other information, that he may require in regard to the operations, undertakings and property of the Authority; and

(b) may submit to the Minister any other reports that the Board considers desirable.

(3) The Minister—

(a) shall lay before Parliament every annual report submitted to him by the Board in terms of subsection (1); and

(b) may lay before Parliament any report submitted to him by the Board in terms of subsection (2).

Part III – Board of Authority

10. Board of Authority

(1) Subject to this Act, the operations of the Authority shall be controlled by a board consisting of not fewer than five and not more than seven members appointed by the Minister after consultation with the President and subject to such directions as the President may give him.

(2) In appointing members of the Board, the Minister shall ensure that each of three of the members is appointed for his or her knowledge of or experience in—

(a) aviation;

(b) aviation law;

(c) administration, management or any other field which is relevant to the operation of the Authority.

[subsection (2) substituted by section 4(a) of Act 8 of 2024]

(3) *[subsection (3) repealed by section 4 of Act 8 of 2024]*

(4) In appointing the members of the Board, the Minister shall endeavour to secure that at least half the appointed members are women.

[subsection (4) added by section 5 of Act 10 of 2018]

11. Disqualifications for appointment to Board

(1) The Minister shall not appoint a person as a member, and no person shall be qualified to hold office as a member, if—

(a) he is neither a citizen of Zimbabwe nor ordinarily resident in Zimbabwe; or

(b) in terms of a law in force in any country—

(i) he has been adjudged or otherwise declared insolvent or bankrupt and has not been rehabilitated or discharged;

or

(ii) he has made an assignment to, or arrangement or composition with, his creditors which has not been rescinded or set aside; or

(c) within the period of five years immediately preceding the date of his proposed appointment, he has been convicted—

(i) in Zimbabwe, of an offence involving dishonesty; or

(ii) outside Zimbabwe, of conduct which, if committed in Zimbabwe, would have constituted an offence involving dishonesty.

(2) A person who is—

(a) a member of Parliament; or

(b) a member of two or more other statutory bodies;

(c) the holder of a public office;

[paragraph (c) added by section 6(a) of Act 10 of 2018]

shall not be qualified for appointment as a member, nor shall he hold office as a member.

(3) For the purposes of paragraph (b) of subsection (2)—

(a) a person who is appointed to a council, board or other authority which is a statutory body or which is responsible for the administration of the affairs of a statutory body shall be regarded as a member of that statutory body;

(b) "statutory body" means—

(i) any commission established by the Constitution; or

(ii) any body corporate established directly by or under an Act for special purposes specified in that Act, the membership of which consists wholly or mainly of persons appointed by the President, a Vice-President, a Minister or any other statutory body or by a Commission established by the Constitution.

(c) "public office" means—

(i) the office of a member of the Cabinet; or

(ii) a paid office in the service of the State, a statutory body or a local authority; or

(iii) the office of a judge or magistrate or other person presiding over a court or tribunal.

[paragraph (c) added by section 6(b) of Act 10 of 2018]

12. Terms and conditions of office of members

(1) Subject to this Part, a member shall hold office for such a period, not exceeding four years, as the Minister may fix on his or her appointment, and upon the expiry of his or her term of office, he or she may be eligible for re-appointment as a member for only one such further term.

[subsection (1) substituted by section 5 of Act 8 of 2024]

(2) On the expiry of the period for which a member has been appointed, he shall continue to hold office until he has been re-appointed or his successor has been appointed:

Provided that a member shall not continue to hold office under this subsection for more than six months.

(3) Subject to this Part, a member shall hold office on such terms and conditions as the Minister may fix for members generally.

13. Vacation of office by members

A member shall vacate his office and his office shall become vacant—

(a) one month after the date on which he gives notice to the Minister of his intention to resign, or after the expiry of such other period of notice as he and the Minister may agree; or

(b) if he ceases to be a citizen of Zimbabwe or ordinarily resident in Zimbabwe; or

(c) on the date he begins to serve a sentence of imprisonment imposed in Zimbabwe or in any other country; or

(d) if he becomes disqualified in terms of paragraph (a) or (b) of subsection (2) of section eleven to hold office as a member; or

(e) if he is required in terms of section fourteen to vacate his office.

14. Minister may require member to vacate his office or may suspend him

(1) The Minister may require a member to vacate his office if the member—

(a) has been guilty of improper conduct as a member or guilty of conduct that is prejudicial to the interests or reputation of the Authority; or

(b) has failed to comply with any condition of his office fixed by the Minister in terms of subsection (3) of section twelve; or

(c) is mentally or physically incapable of efficiently exercising his functions as a member.

(2) The Minister, on the recommendation of the Board, may require a member to vacate his office if the Minister is satisfied that the member has been absent without the permission of the Board from three consecutive meetings of the Board, of which the member was given not less than seven days' notice, and that there was no just cause for the member's absence.

(3) The Minister may—

(a) suspend from office a member against whom criminal proceedings have been instituted in respect of an offence for which a sentence of imprisonment without the option of a fine may be imposed; and

(b) shall suspend from office a member who has been sentenced by a court to imprisonment without the option of a fine, whether or not any portion has been suspended, pending determination of the question whether the member is to vacate his office;

and while the member is so suspended he shall not exercise any functions or be entitled to any remuneration as a member.

15. Dismissal of Board

(1) Subject to subsection (2), if the Minister considers that—

(a) the Board has contravened this Act or any other law and has failed to rectify the contravention within a reasonable time after being required to do so by the Minister; or

(b) the Board has failed to comply with a direction in terms of section seven; or

(c) whether through disagreements amongst its members or otherwise, the Board is unable to control the operations of the Authority;

and that it is in the national interest to do so, the Minister may, by written notice to the Chairman of the Board and the General Manager, dismiss all the members of the Board, and their offices shall become vacant as soon as the General Manager receives the notice.

(2) Before dismissing all the members of the Board in terms of subsection (1), the Minister shall consult the President and act in accordance with any directions the President may give him.

(3) A member who has been dismissed in terms of subsection (1) shall be eligible for re-appointment.

16. Filling of vacancies on Board

(1) On the death of, or the vacation of office by, a member, the Minister may, subject to this Part, appoint a person to fill the vacancy:

Provided that, if as a result of the vacancy the number of members is fewer than the minimum specified in subsection (1) of section ten, the Minister shall appoint a person to fill the vacancy within one month after being notified of it by the chairman of the Board.

[subsection (1) amended by section 7 of Act 10 of 2018]

(2) Within one month after dismissing all the members of the Board in terms of section fifteen, the Minister shall, subject to this Part, appoint a new Board.

17. Chairman and vice-chairman of Board

(1) Subject to subsection (3), the Minister shall appoint one of the members to be chairman of the Board.

(2) Within one month after the office of chairman of the Board falls vacant, the Minister shall, subject to subsection (3), appoint a member to fill the vacancy.

[subsection (2) amended by section 8 of Act 10 of 2018]

(3) The Minister shall appoint a chairman in terms of subsection (1) or (2) after consultation with the President and in accordance with any directions the President may give him.

(4) At its first meeting the Board shall elect from amongst its members a vice-chairman, who shall hold office at the pleasure of the Board.

(5) Whenever the office of vice-chairman of the Board falls vacant, the Board shall as soon as possible elect one of its members to fill the vacancy.

(6) The vice-chairman of the Board shall perform the functions of the chairman whenever the chairman is unable to do so.

18. Meetings and procedure of Board

(1) The Board shall hold its first meeting on a date and place fixed by the Minister, and thereafter shall meet for the dispatch of business and adjourn, close and otherwise regulate its meetings and procedure as it thinks fit:

Provided that the Board shall meet at least once every quarter in each financial year.

[subsection (1) amended by section 6 of Act 8 of 2024]

(2) The chairman of the Board—

(a) may convene a special meeting of the Board at any time; and

(b) shall convene a special meeting of the Board on the written request of the Minister or not fewer than two members, which meeting shall he convened for a date not sooner than seven days and not later than thirty days after the chairman's receipt of the request.

(3) Written notice of a special meeting convened in terms of subsection (2) shall be sent to each member not later than forty-eight hours before the meeting and shall specify the business for which the meeting has been convened.

(4) No business shall be discussed at a special meeting convened in terms of subsection (2) other than —

(a) such business as may be determined by the chairman of the Board, where he convened the meeting in terms of paragraph (a) of subsection (2); or

(b) the business specified in the request for the meeting, where the chairman of the Board convened the meeting in terms of paragraph (b) of subsection (2).

(5) The chairman of the Board or, in his absence, the vice-chairman shall preside at all meetings of the Board:

Provided that, if the chairman and vice-chairman are both absent from any meeting of the Board, the members present may elect one of their number to preside at that meeting as chairman.

(6) Three members shall form a quorum at any meeting of the Board.

(7) Subject to subsection (11), anything authorized or required to be done by the Board may be decided by a majority vote at any meeting of the Board at which a quorum is present.

(8) With the Board's approval, the chairman of the Board may invite any person to attend a meeting of the Board or of a committee, where the chairman considers that the person has special knowledge or experience in any matter to be considered by the Board or the committee, as the case may be, at that meeting.

(9) A person invited to attend a meeting of the Board or of a committee in terms of subsection (8) may take part in the proceedings of the Board or the committee as if he were a member thereof, but shall not have a vote on any question before the Board or committee, as the case may be.

(10) Subject to section twenty, at all meetings of the Board each member present shall have one vote on any question before the Board and, in the event of an equality of votes, the person presiding at the meeting shall have a casting vote in addition to a deliberative vote.

(11) Any proposal circulated among all members and agreed to in writing by a majority of them shall have the same effect as a resolution passed by a duly constituted meeting of the Board and shall be incorporated into the minutes of the next succeeding meeting of the Board:

Provided that, if a member requires that such a proposal be placed before a meeting of the Board, this subsection shall not apply to the proposal.

19. Committees of Board

(1) For the better exercise of its functions, the Board may establish one or more committees in which the Board may vest such of its functions as it considers appropriate:

Provided that the vesting of any function in a committee shall not divest the Board of that function, and the Board may amend or rescind any decision of the committee in the exercise of that function.

(2) On the establishment of a committee in terms of subsection (1), the Board—

(a) shall appoint at least one member of the Board as a member of the committee, and that member or one of those members, as the case may be, shall be chairman of the committee; and

(b) may appoint as members of the committee, on such terms and conditions as the Board may fix, persons who are not members of the Board.

(3) Meetings of a committee may be convened at any time and at any place by the chairman of the Board or the chairman of the committee.

(4) Subject to subsection (3) and to sections twenty and twenty-two, the procedure to be followed at any meeting of a committee and the quorum at any such meeting, shall be as fixed by the Board.

20. Members of Board and committees to disclose connection with companies and firms dealing with Authority

(1) If a member of the Board or of a committee, or a spouse of such a member—

(a) tenders for or acquires or holds a direct or indirect pecuniary interest in a contract with the Authority; or

(b) knowingly acquires or holds a direct or indirect pecuniary interest in a company or association of persons applying or negotiating for a contract with the Authority; or

(c) owns immovable property or a right in immovable property or a direct or indirect pecuniary interest in a company or association of persons which results in his private interests coming or appearing to come into conflict with his functions as a member of the Board or of the committee, as the case may be;

the member shall forthwith disclose the fact to the Board or the committee, as the case may be.

(2) A member referred to in subsection (1) shall take no part in the consideration or discussion of, or vote on, any question before the Board or the committee, as the case may be, which relates to any contract, right, immovable property or interest referred to in that subsection.

(3) A member or the Board or a committee who contravenes subsection (1) or (2) shall be guilty of an offence and liable—

(a) if he or she obtained a consideration, advantage or benefit as a result of the contravention, to a fine not exceeding level fourteen or twice the value of the consideration, advantage or benefit, whichever is the grater amount, or to imprisonment for a period not exceeding ten years or to both such fine and such imprisonment; or

(b) to a fine not exceeding level fourteen or to imprisonment for a period not exceeding five years or to both such fine and such imprisonment, if he or she did not or it is not established that he or she obtained a consideration, advantage or benefit as a result or a contravention.

[subsection (3) amended by Act 22 of 2001 and substituted by section 9 of Act 10 of 2018]

21. Remuneration and allowances of members of Board and committees

Every member of the Board or of a committee shall be paid from the funds of the Authority—

(a) such remuneration, if any, as the Minister may fix for members of the Board or of committees, as the case may be, generally; and

(b) such allowances as the Minister may fix to meet any reasonable expenses incurred by the member in connection with the business of the Authority or the committee, as the case may be.

22. Minutes of proceedings of Board and committees

(1) The Board shall cause minutes of all proceedings of and decisions taken at every meeting of the Board and of every committee to be entered in books kept for the purpose.

(2) Any minutes referred to in subsection (1) which purport to be signed by one person presiding at the meeting to which the minutes relate or by the person presiding at the next following meeting of the Board or the committee concerned, as the case may be, shall be accepted for all purposes as *prima facie* evidence of the proceedings and decisions taken at the meeting concerned.

23. Validity of decisions and acts of Board and committees

No decision or act of the Board or a committee or act that is authorized by the Board or a committee shall be invalid solely because there was a vacancy in the membership of the Board or the committee or because

a disqualified person purported to act as a member of the Board or the committee, as the case may be, at the time the decision was taken or the act was done or authorized.

Part IV – Staff of Authority

24. Director-General of Authority

(1) Subject to this Act, the Board, after consultation with the Minister, shall appoint, on such terms and conditions as the Board may fix, a person to be the Director-General of the Authority.

(2) When appointing the Director-General the Board—

(a) must appoint someone who is—

(i) a citizen of Zimbabwe who is ordinarily resident in Zimbabwe; and

(ii) of good moral character and proved integrity; and

(iii) in its opinion, suitable and competent to undertake the efficient discharge of the Director-General's functions under this Act;

and

(b) shall take into consideration the following factors (which factors must not, however, override the suitability and competence criterion referred to in paragraph (a)(iii)—

(i) the person's professional and technical qualifications and experience in the field of civil aviation;

(ii) the person's management qualifications and experience, preferably in the field of civil aviation;

and

(c) shall not appoint someone who is employed or retained by, or receives any form of allowance, benefit or remuneration from, any aviation or aeronautical enterprise, unless such person discloses this fact to the Board and satisfies the Board that he or she will cease to be employed or retained by, or cease to receive any form of allowance, benefit or remuneration from, the enterprise on or before appointment as Director-General; and

(d) shall not appoint someone who owns, owns securities in or has any material interest in any aviation or aeronautical enterprise, unless such person discloses this fact to the Board and explains to the satisfaction of Board how—

(i) he or she proposes to dispose of such ownership interest, securities or other interest on, before or as soon as reasonably possible after appointment as Director-General; or

(ii) he or she will so arrange his or her affairs so as to ensure that the holding of the securities or interest in question will not cause any conflict with his or her duties as the Director-General.

(3) The appointment of the Director-General shall terminate if—

(a) he or she would be required in terms of section 13(1)(c), (d) or (e) to vacate his or her office had that section, and section 11(2)(a) or (b) applied to him or her; or

(b) without the prior written approval of the Board, given after consultation with the Minister—

(i) he or she acquires any securities or other material interest in any aviation or aeronautical enterprise; or

(ii) he or she breaches any arrangement referred to in subsection (2)(d)(ii) that was made to avoid the conflict of interest there referred to;

or

(c) he or she acquires ownership of, or becomes employed in any capacity or is retained by, or receives any form of allowance, benefit or remuneration from, any aviation or aeronautical enterprise.

(4) Subject to any other law governing the terms of office of heads of public entities, the term of office of the Director-General shall be five years, which may be renewed for one more term only.

[section 24 substituted by section 10 of Act 10 of 2018]

24A. Duties of Director-General

(1) Subject to this Act, the Director-General shall—

(a) on behalf of the Board, ensure that the functions of the Authority referred to in section 6 are performed or exercised; and

(b) be the head of the Authority's administration and manage its affairs, in which capacity he or she is responsible for—

(i) the appointment, deployment, organisation, direction and discipline of the staff of the Authority;

(ii) the formation and development of an efficient administration for the Authority;

(iii) the establishment and maintenance of a register of inspectors, authorised officers and authorised p zcxcrsons;

(iv) the implementation and enforcement of international best standards and practices in the sphere of civil aviation;

and

(c) establish and maintain a school and other training facilities for the purpose of offering instruction and training in skills related to the aviation industry; and

(d) submit to the Board an annual report concerning the activities of the Authority, with particular emphasis on accident investigation and prevention; and

(e) perform such functions as the Board may assign to him or her:

Provided that such assignment of functions by the Board—

(i) may be made generally or specially and subject to such conditions, restrictions, reservations and exceptions as the Board may determine;

(ii) may be revoked by the Board at any time;

(iii) shall not preclude the Board itself from exercising the functions.

(f) do any other thing as by or under this Act the Director-General may be required to do.

[section 24A inserted by section 10 of Act 10 of 2018]

24B. Powers of Director-General

(1) In addition to the powers vested in him or her by or under this Act, the Director-General shall have such powers as are reasonably necessary to enable him or her to perform his or her statutory duties, or that are incidental to the performance thereof.

(2) The Director-General issues on behalf of the Authority, and in the prescribed manner, all licences, permits, certificates, restrictions and registrations that are required to be issued by or under this Act.

(3) In furtherance of the objects referred to in section 5, the Director-General shall, when performing his or her duties or exercising his or her powers, endeavour to consult interested persons engaged in civil aviation or the civil aviation industry.

(4) The Director-General shall establish a system which shall provide safety and security oversight for the implementation of the aviation safety and security policies, regulations and procedures which shall be implemented in accordance with—

(a) the provisions of this Act and regulations made thereunder;

(b) the technical guidance of qualified technical personnel and tools;

(c) licensing, certification, authorisation or approval obligations;

(d) surveillance or quality control obligations;

(e) the requirements for timely resolution of safety and security concerns.

[subsection (4) added by section 7 of Act 8 of 2024]

[section 24B inserted by section 10 of Act 10 of 2018]

24C. Scope of the Director-General's tertiary rule making powers

(1) Without derogating from or infringing upon regulations made under section 79, the Director-General may in the name of the Authority—

(a) make any order in the following cases that will be binding for as long as it is in force—

(i) in explication or interpretation of any technical standards: or

(ii) to compel compliance with national aviation safety and security standards and requirements, if any deficiencies are identified through surveillance or quality control activities or as the result of any air accident investigation; or

(iii) in response to any International Civil Aviation Organisation (ICAO) communication notifying the Authority of any change to the Chicago Convention or its annexes, which change does not involve or require an amendment of the regulations; or

(iv) to implement any measure recommended by the Unit responsible for aviation accident or incident investigations for the avoidance of similar accidents in the future; or

(v) to implement immediately any measure which in the Director-General's opinion is necessary to ensure the safety and security of civil aviation in Zimbabwe; or

(vi) tomake temporary provision for any matter for which regulations may be made, which order shall have force for one hundred and eighty days or until the provisions order are promulgated as regulations, whichever is the earlier; or

(b) issue directives for the purposes of enforcing this Act and the regulations that will be binding upon the person or entity or class of persons or entities, addressed by that directive, for as long as it is in force; or

(c) issue a security directive:

Provided that the Director-General shall have a discretion whether to publish such security directive, and if it is not published, the Director-General shall keep a record of it for inspection by an person to whom it has been issued and by other persons affected by it, for a period of at least five years after it has been issued.

(2) Any order or directive made or issued under this section—

(a) shall, in the case of an order, have effect from the date when—

(i) itis published on the official website of the Authority (or in the event that the Website 1s offline, on the date of the order's issuance under subparagraph (ii)); or

(ii) it is issued to such persons and in such manner, as in the opinion of the Director-General, will give any person affected by it an adequate opportunity of getting to know it (and when such order is published later on the Authority's Website, the date of issuance is the effective date of the order):

Provided that if an effective date is specified in the order which is later than the date referred to in subparagraph (i) or (ii), that later date shall be the effective date;

(b) shall, in the case of a directive, have effect from the date when it is issued to such persons and in such manner as in the opinion of the Director-General, will give any person affected by it an adequate opportunity of getting to know it (and when such directive is published later on the Authority's website, the date of issuance is the effective date of the directive);

(c) may be varied or revoked in the same manner as it was published or issued under paragraph (a) or (b).

(3) Any person who contravenes any order or directive referred to in this section, commits an offence, on prosecution and conviction for which the offender, shall be liable to a fine not exceeding level 5 or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

(4) In addition a person who contravenes such order or directive commits a civil default for which the Authority may, without derogating from any criminal or non-criminal penalty that may be imposed by this Act or any other law for the conduct constituting the default, serve upon the defaulter a civil penalty of category 1, for which any continuing default shall attract a penalty at the cumulative rate.

[section 24C inserted by section 8 of Act 8 of 2024]

24D Technical standards for civil aviation

(1) The Director-General may issue technical standards for civil aviation by means of an order made under section 24C.

(2) In any order issued for the purposes of subsection (1), the Director-General may incorporate into a technical standard any international aviation standard or any amendment, without stating the text of such standard or amendment, by mere reference to the title, number and year of issue of such standard or amendment or to any other particulars by which such standard or amendment is sufficiently identified.

(3) An authorised officer designated by the Director-General for that purpose must keep in his or her office a copy of the complete text of each international aviation standard or each amendment thereof which has been incorporated into any technical standard in accordance with subsection (1), and must at the request in writing of any interested person make such copy available free of charge to such person for inspection or for making a copy thereof, at such person's expense, at a place approved by the said officer.

(4) To the extent that any technical guidance material is binding on any person by virtue of any provision of the regulations, such technical guidance material shall be deemed to form part of the regulations, and any breach of a requirement of such technical guidance material is punishable in the same way as a breach of the relevant provision of the regulations is punishable.

[section 24D inserted by section 8 of Act 8 of 2024]

25. Secretary of Authority

(1) Subject to this Act, the Board shall appoint, on such terms and conditions as the Board may fix, a person to be the Secretary of the Authority.

(2) Subject to the General Manager's directions, the Secretary shall be responsible for—

(a) taking minutes of the proceedings and decisions of the Board and its committees; and

(b) keeping the records of the Authority; and

(c) performing any other function that may be assigned to him by the Board.

26. Other staff of Authority and powers of Director-General in relation thereto

(1) Subject to any other law, the Authority shall employ, on such terms and conditions as the Board may fix, such persons as the Board considers necessary for conducting the Authority's operations, and may promote, suspend or discharge any such employee:

(2) Pursuant to subsection (1) the Board shall fix, review and amend the staff establishment of the Authority, and the Director-General shall employ the persons needed to fill posts and vacancies in the establishment and promote persons to any post in that establishment:

Provided that—

(a) the Board shall obtain the Minister's approval before establishing any post of such class or grade as the Minister, by written notice to the Board, may designate; and

(b) the Director-General shall obtain the Board's approval before appointing or promoting any person to a post of such class or grade as the Board, by written directive to the Director-General, may designate.

(3) With the approval of the Board, the Director-General may designate any—

(a) employee of the Authority as a safety and security oversight inspector or authorised officer;

(b) person who is not an employee of the Authority as a safety and security oversight inspector or authorised officer.

(4) The qualifications and duties of persons designated under subsection (1) shall be as prescribed.

[section 26 substituted by section 11 of Act 10 of 2018]

Part V – Issue of shares and securities by Authority

27. Authorized share capital of Authority

(1) The authorized share capital of the Authority shall be such number of shares of such value as the Board may fix by resolution with the approval of the Minister and the Minister responsible for finance.

(2) With the approval of the Minister and the Minister responsible for finance, the Board may by resolution increase the Authority's authorized share capital.

(3) Where the Board has fixed or increased the Authority's authorized share capital in terms of this section, the Minister shall cause notice thereof to be published in the *Gazette*.

28. Allotment, issue and transfer of Authority's shares

(1) The Board shall allot to the State such number of the Authority's shares, subject to such terms and conditions, as the Minister and the Minister responsible for finance may determine in consultation with the Board.

(2) The remainder of the Authority's shares may be issued to the State and additionally, or alternatively, to persons other than the State in such circumstances and subject to such terms and conditions as may be determined by the Board with the approval of the Minister and the Minister responsible for finance.

(3) Terms and conditions under which the Authority's shares are allotted or issued to the State may include terms and conditions—

(a) for payment to be made out of moneys appropriated for the purpose by Act of Parliament; or

(b) for the value of all or any of the shares to be set off against loans previously granted to the Authority by the State; or

(c) for all or any of the shares to be allotted or issued in consideration for—

(i) the transfer of any property from the State to the Authority; or

(ii) the writing off of loans previously granted to the Authority by the State; or

(iii) capital grants previously made to the Authority by the State.

(4) The Authority's shares may be transferred by the holders subject to such terms and conditions as may be prescribed or as may be determined by the Minister and the Minister responsible for finance in consultation with the Board:

Provided that no fresh restrictions shall be imposed on the transferability of any share while it is held by a person other than the State.

29. Liability of shareholders

The liability of the holder of a share issued by the Authority shall be limited to the amount, if any, unpaid on the share.

30. Issue of other securities by Authority

(1) The Authority may issue securities other than shares, which may be taken up in such circumstances and under such terms and conditions as the Minister and the Minister responsible for finance may determine.

(2) Securities issued by the Authority in terms of subsection (1) and taken up by the State shall be paid for out of moneys appropriated for the purpose by Act of Parliament, unless the securities are issued in consideration for a loan granted by the State to the Authority.

(3) Securities issued by the Authority in terms of subsection (1) may be transferred subject to such terms and conditions as may be determined by the Minister and the Minister responsible for finance in consultation with the Board:

Provided that no fresh restrictions shall be imposed on the transferability of any security while it is held by a person other than the State.

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Part VI – Financial provisions relating to Authority

31. Conduct of financial affairs of Authority

It shall be the object of the Authority so to exercise its functions and conduct its operations as to ensure that in each financial year its income is sufficient, taking one year with another—

(a) to meet the expenditure which is properly chargeable to revenue in that year; and

(b) to enable the Authority to make provision for any taxes, duties or rates for which it is liable; and

(c) to permit the redemption on due date of the Authority's debentures and other loan capital; and

(d) to enable the Authority to make such appropriations to its general reserve in terms of section thirty-six as may be necessary or desirable; and

(e) to permit the payments referred to in section thirty-three;

and in general the Authority shall conduct its operations on sound commercial lines.

32. Funds of Authority

(1) The funds of the Authority shall consist of—

(a) fees, levies and charges payable to the Authority for registrations effected, licences, permits or certificates issued, services rendered or anything else done by it under this Act; and

(b) the aviation safety surcharge levied in terms of section 59A; and

(c) such moneys as may be payable to the Authority from moneys appropriated for the purpose by Act of Parliament; and

(d) grants and loans from the Government; and

(e) any other moneys than those referred to in paragraph (d) that the Authority may obtain, with the approval of the Minister and the Minister responsible for finance, by way of grants and donations; and

(f) any other moneys that may vest in or accrue to the Authority, whether in terms of this Act or otherwise.

(2) The Authority shall keep the following separate accounts, namely—

(a) the Accidents and Occurrences Contingency Account, in respect of moneys accruing to the Authority from the aviation safety surcharge; and

(b) the General Aviation Account, in respect of income accruing to the Authority from the other sources mentioned in subsection (1).

(3) Without derogating from the requirements of the Public Debt Management Act *[Chapter 22:21]* (No. 5 of 2015), the Authority may, with the approval the Minister given after consultation with the Minister responsible for finance, raise money by way of loans.

[section 32 substituted by section 12 of Act 10 of 2018]

33. Payment of dividends

Where in a financial year the revenues of the Authority are more than sufficient—

(a) to meet the Authority's expenditure which is properly chargeable to revenue in that year; and

(b) to enable the Authority to make provision for any taxes, duties or rates for which it is liable; and

(c) to permit the redemption on due date of the Authority's debentures and other loans; and

(d) to enable the Authority to make such appropriations to its general reserve in terms of section thirty-six as are necessary or desirable;

the Authority shall pay out of the surplus such dividends to its shareholders as the Board may determine in relation to that year, subject to the approval of the Minister and the Minister responsible for finance.

34. Investment of moneys not immediately required by Authority

Moneys not immediately required by the Authority may be invested in such manner as the Minister, acting on the advice of the Minister responsible for finance, may approve.

35. Authority to make certain charges to revenue account

(1) The Authority shall charge to its revenue account all charges which, in the normal conduct of business, are regarded as proper to be charged to revenue account and, in so doing, shall make proper provision in each financial year for—

(a) the depreciation or diminution in value of its assets; and

(b) the payment of interest on and all other charges and expenses incurred in connection with its activities.

(2) In charging to its revenue account all charges which in the normal conduct or business are regarded as proper to be charged to revenue account as provided in subsection (1), the Board may, in each financial year, make provision for—

(a) meeting in whole or in part increases in the cost of replacing assets to an extent approved by the Minister and the Minister responsible for finance; and

(b) making payments to an insurance fund established by the Board to meet, wholly or in part, such of the Authority's liabilities as the Minister may approve; and

(c) making payments to a pension fund to meet, wholly or in part, superannuation liabilities of the Authority.

36. Establishment and operation of general reserve

(1) The Authority shall establish a general reserve to which, subject to this Part, the Board may appropriate from a surplus of income over expenditure at the end of the Authority's financial year such sums as the Minister and the Minister responsible for finance may approve.

(2) Subject to this Part, moneys in the general reserve established in terms of subsection (1) may be used for such purposes as the Board considers expedient for the proper exercise of the Authority's functions, including the development of its assets.

37. Financial year of Authority

The financial year of the Authority shall be the period of twelve months ending on the 31st December in each year or on such other date as may be prescribed.

38. Accounts of Authority

(1) The Board shall ensure that proper accounts and other records relating to such accounts are kept in respect of all the Authority's activities, funds and property, including such particular accounts and records as the Minister or the Minister responsible for finance may direct.

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(2) As soon as possible after the end of each financial year, the Board shall prepare and submit to the Minister a statement of accounts in respect of that financial year or in respect of such other period as the Minister may direct.

39. Audit of Authority's accounts

(1) Subject to the Audit and Exchequer Act *[Chapter 22:03]*, the Authority shall appoint as auditors one or more persons approved by the Minister who are registered as public auditors under the Public Accountants and Auditors Act *[Chapter 27:12]*.

(2) The accounts kept by the Authority in terms of subsection (1) of section thirty-eight shall be examined by the auditors appointed in terms of subsection (1).

(3) The auditors appointed in terms of subsection (1) shall make a report to the Board and to the Minister on the statement of accounts prepared in terms of subsection (2) of section thirty-eight, and in their report shall state whether or not in their opinion the statement of accounts gives a true and fair view of the Authority's financial affairs.

(4) In addition to the report referred to in subsection (3), the Minister may require the Board to obtain from the auditors appointed in terms of subsection (1) such other reports, statements or explanations in connection with the Authority's activities, funds and property as the Minister may consider expedient, and the Board shall forthwith comply with any such requirement.

(5) If, in the opinion of the auditors appointed in terms of subsection (1)—

(a) they have not obtained any information or explanation they require; or

(b) any accounts or records relating to any accounts have not been properly kept by the Authority; or

(c) the Authority has not complied with any provision of this Part;

the auditors shall include in their report made in terms of subsection (3) or (4), as the case may be, a statement to that effect.

(6) If in terms of the Audit and Exchequer Act *[Chapter 22:03]* the Authority's accounts are required to be audited by the Comptroller and Auditor-General, any reference in this section to auditors appointed in terms of subsection (1) shall be construed as a reference to the Comptroller and Auditor-General.

40. Powers of auditors

(1) An auditor referred to in section thirty-nine shall be entitled at all reasonable times to require to be produced to him all accounts and other records relating to such accounts which are kept by the Authority or its agents and to require from any member of the Board or employee or agent of the Authority such information and explanation as in the auditor's opinion are necessary for the purpose of his audit.

(2) Any member of the Board or employee or agent of the Authority who fails without just cause to comply with a requirement of an auditor in terms of subsection (1) shall be guilty of an offence and liable to a fine not exceeding level four or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

[subsection amended by Act 22 of 2001]

Part VII – Civil aviation

41. Authority to observe Chicago Convention and other international treaties

(1) The Authority shall carry out its functions in a manner consistent with the Chicago Convention and any other international convention, treaty or agreement relating to civil aviation to which Zimbabwe is a party.

(2) The Authority shall be responsible for performing the obligations of Zimbabwe under any agreement between Zimbabwe and any other country or international organization with respect to the safety, security, regularity and efficiency of air navigation

42. Control of aviation in Zimbabwe vested in Authority

(1) Subject to this Act, no person shall cause an aircraft to—

(a) arrive in Zimbabwe; or

(b) depart from Zimbabwe; or

(c) overfly Zimbabwe;

except with the Authority's permission and in accordance with any terms and conditions specified by the Authority.

(2) Any person who contravenes subsection (1) shall be guilty of an offence and liable to a fine not exceeding level 5 or to imprisonment for a period not exceeding 5 years or to both such fine and such imprisonment.

[subsection amended by Act 22 of 2001]

[subsection (2) substituted by section 9 of Act 8 of 2024]

43. Air navigation services

(1) The Authority shall provide air navigation services in Zimbabwean airspace and for any other area for which Zimbabwe, pursuant to international arrangements, is responsible for providing air navigation services.

(2) The Authority shall be responsible for directing and co-ordinating search and rescue services within the areas referred to in subsection (1).

(3) Regulations made under section 79 may prescribe anything necessary or expedient to be prescribed for the purpose of this section, including the provision of specified measures of assistance to aircraft in distress in Zimbabwean territory, and allowing owners of the aircraft or authorities of the State in which the aircraft is registered to provide such measures of assistance as may be necessitated by the circumstances.

[subsection (3) added by section 10 of Act 8 of 2024]

44. Safety and security standards

The Authority shall be responsible for—

(a) setting and maintaining safety and security standards related to aviation personnel, aircraft and aerodromes; and

(b) ensuring the safety and security of passengers, aviation personnel and the general public in all matters related to safeguarding against acts of unlawful interference; and

(c) establishing and implementing a process for management of conflict in a civil aviation setting between safety or security and environmental concerns and in the event of such conflict not being resolved by mutual agreement, aviation safety and security shall not be compromised and shall take precedence.

[section 44 substituted by section 11 of Act 8 of 2024]

44A. Civil aviation security programmes

(1) Subject to this Act the Authority shall—

(a) with the approval of the Minister, be responsible for the development of national civil aviation security policies, strategies and programmes in Zimbabwe; and

(b) with due regard to Zimbabwe's obligations under the Chicago Convention, any other international convention, treaty or agreement relating to civil aviation to which Zimbabwe is a party, and to international best standards and practices—

(i) be responsible for the establishment, compilation, revision and publication of national civil aviation security programmes;

(ii) regulate the security operations of aerodromes, ground handlers, catering operators and other workers or agents in the civil aviation industry in order to—

(A) protect passengers, crew, aerodrome staff and other users of aerodrome and aviation facilities;

(B) prevent aerial piracy and other unlawful interference with civil aviation;

(C) ensure that appropriate action is taken when aerial piracy or other acts of unlawful interference with civil aviation occurs or threatens to occur;

(c) co-ordinate activities under a national civil aviation security programme and other programmes referred to in paragraph (d);

(d) specifically develop, and ensure the implementation of, the following national programmes—

(i) a national civil aviation security programme, in order to safeguard civil aviation against acts of aerial piracy and other acts of unlawful interference with civil aviation through practices and procedures which take into account the safety, regularity and efficiency of flights; and

(ii) a national civil aviation security training programme, in order to train personnel of all entities involved with, or who are responsible for, the implementation of various aspects of the national civil aviation security programme; and

(iii) a national civil aviation security quality control programme, which shall provide the structure, responsibilities, processes and procedures that promote and establish an environment and culture of continuing improvement and enhancement of civil aviation security in an effective manner; and

(iv) a national civil aviation screener certification programme.

(e) ensure that the primary objective of aviation security is the safety of passengers, crew, ground personnel and the general public in all matters related to safeguarding against acts of unlawful interference.

[paragraph (e) added by section 12 of Act 8 of 2024]

(2) The national programmes developed under subsection (1) shall be considered by the National Civil Aviation Security Committee, and the Committee shall recommend to the Minister the approval of such programmes.

(3) The national programmes developed under subsection (1) shall be reviewed and updated from time to time as required by changing circumstances.

(4) The National Civil Aviation Security Committee shall ensure that the management, setting of priorities and organisation of the national civil aviation security quality control programme is undertaken independently from the entities and persons responsible for the implementation of the measures taken under that programme.

(5) The Authority shall make available to aerodrome operators and aircraft operators and other interested persons written copies of the appropriate part of the national civil aviation security quality control programme that is relevant to them.

[section 44A inserted by section 13 of Act 10 of 2018]

44B. National Civil Aviation Security Committee

(1) The Minister shall establish a National Civil Aviation Security Committee, which shall have the following mandate—

(a) to define, allocate and co-ordinate tasks in the sphere of civil aviation security—

(i) among and between Ministries, departments, agencies and other organisations; and

(ii) between aerodromes and air operators; and

(iii) among and between entities concerned with, or responsible for the implementation of various aspects of, the national civil aviation security programme;

(b) to advise the Minister with regard to civil aviation security policy;

(c) to review the effectiveness of civil aviation security measures and procedures and make appropriate recommendations to the Minister and the Authority.

(2) The National Civil Aviation Security Committee shall consist of—

(a) the Director-General, who shall be the chairperson of the Committee, and in whose absence a member of the Committee chosen by the membership thereof shall act as chairperson; and

(b) an officer responsible for national air transport facilitation in the Ministry responsible for civil aviation designated by the Minister; and

(c) an officer of the Authority designated by the Director-General; and

(d) an employee of the company established under section 82 designated by the chief executive officer of that company; and

(e) a commissioned member of the Zimbabwe Defence Forces designated by the Commander thereof; and

(f) a member of the Intelligence Services designated by the Director-General thereof; and

(g) a commissioned member of the Zimbabwe Republic Police designated by the Commissioner-General thereof; and

(h) an officer in the Ministry of foreign affairs designated by the Minister thereof; and

(i) an immigration officer designated by the Minister responsible for home affairs; and

(j) an officer responsible for customs administration designated by the Commissioner-General of the Zimbabwe Revenue Authority; and

(k) one or more persons invited by the Director-General from time to time for their knowledge, qualifications, experience or competence in any matter to be considered by the Committee.

(3) In discharging its mandate the National Civil Aviation Security Committee shall consult interested persons engaged in civil aviation or the civil aviation industry.

[section 44B inserted by section 13 of Act 10 of 2018]

44C. Establishment and constitution of the National Air Transport Facilitation Committee

(1) The Minister shall establish a National Air Transport Facilitation Committee, which shall have the following mandate —

(a) to develop and implement a National Air Transport Facilitation Programme to ensure coordination between relevant ministries, agencies and the civil aviation industry to remove unnecessary obstacles and delays to the provision of civil air transport services and improve their level of efficiency;

(b) to advise the Authority on matters relating to facilitation of civil air transport and recommend and review the effectiveness of facilitation measures and procedures;

(c) to encourage the development of best practices in all areas related to the facilitation of civil air transport, including immigration, customs and handling of persons with disabilities;

(d) to inform Government departments, competent Statutory and non-statutory agencies and other organisations having a stake in the facilitation of civil air transport, of developments in that field, and solicit their advice and make recommendations to them regarding issues of concern to them related to the National Air Transport Facilitation Programme;

(e) to consider recommendations to enhance facilitation of civil air transport made by relevant entities or the public;

(f) to propose changes to regulations with a view to facilitating civil air transport; and

(g) to coordinate with the National Civil Aviation Security Committee on security related elements of civil air transport facilitation matters.

(2) The composition of National Air Transport Facilitation Committee shall be as prescribed by the Minister.

(3) The Director-General or his or her designate shall be the Chairperson of the committee and shall appoint an employee of the Authority to the secretary of the committee.

[section 44C inserted by section 13 of Act 8 of 2024]

45. Aeronautical information services and publications

(1) The Authority shall provide aeronautical services, which shall comprise the collection and dissemination of aeronautical information and instructions with respect to—

(a) aerodromes; and

(b) air traffic control services and facilities; and

(c) communication and air navigation services and facilities; and

(d) meteorological services and facilities; and

(e) search and rescue services and facilities; and

(f) procedures and regulatory requirements connected with air navigation; and

(g) hazards to air navigation; and

(h) differences from standards, recommended practices and procedures set by the International Civil Aviation Organization; and

(i) units of measurement; and

(j) nationality and registration marks; and

(k) special equipment to be carried on aircraft; and

(l) bird concentrations on or in the vicinity of aerodromes; and

(m) prohibited and restricted airspace and danger areas; and

(n) minimum flight altitudes; and

(o) fees and charges; and

(p) aeronautical charts.

(2) In providing aeronautical information services, the Authority shall publish—

(a) all aeronautical information and instructions which, by or in terms of this Act, are required to be so published; and

(b) such other aeronautical information and instructions as are of a lasting character essential to air navigation; and

(c) any other matter which, in the Board's opinion, will facilitate air traffic.

(3) The Authority shall publish notices to airmen, which shall include—

(a) aeronautical information and instructions which, by or in terms of this Act, are required to be so published; and

(b) any other aeronautical information and instructions which are of a temporary character or which, in the Board's opinion, should be published in such a notice.

(4) The Authority shall send copies of all publications referred to in subsections (2) and (3) to the International Civil Aviation Organization.

46. Technical services

The Authority shall be responsible for providing technical services in regard to the design, installation, maintenance and modification of electronic, radio and other equipment used in the provision of air navigation and communication services.

47. Meteorological services

(1) The Authority shall be responsible for providing aviation meteorological services in Zimbabwe.

(2) The Authority shall ensure that information concerning weather conditions is provided to all aircraft in Zimbabwean airspace in a timely and orderly fashion.

(3) The Minister shall ensure that the State provides meteorological information to the Authority on terms and conditions agreed between the State and the Authority.

Part VIII – Air operators' certification

48. Interpretation in Part VIII

In this Part—

"**air operator's certificate**" means an air operator's certificate issued in terms of section fifty;

"**air service**" means any service operated by means of an aircraft for reward, but does not include—

(a) a service which—

(i) is operated solely for the benefit of a company or group of companies, or any subsidiary thereof, in its commercial activities by a person who is a member of or employed by the company, group or subsidiary; and

(ii) is not offered for reward to the public in general; or

(b) the conducting of flight testing or assessment of skills in respect of flying an aircraft; or

(c) participation in an air race by an aircraft which is sponsored on condition that the trade name of the sponsor is affixed to the aircraft for the duration of the race; or

(d) such other services or activities as may be prescribed.

49. Air operator's certificate required for operation of air service

(1) No person shall operate or attempt to operate an air service in Zimbabwe except in accordance with the terms and conditions of an air operator's certificate issued to him in terms of this Part.

(2) Any person who contravenes subsection (1) shall be guilty of an offence and liable to a fine not exceeding level 5 or to imprisonment for a period not exceeding 5 years or to both such fine and such imprisonment.

[subsection (2) amended by Act 22 of 2001]

[subsection (2) substituted by section 14 of Act 8 of 2024]

50. Issue or refusal of air operator's certificate

(1) A person who wishes to obtain an air operator's certificate shall apply to the Authority in the prescribed form and manner and shall—

(a) provide the Authority with such information as may be prescribed or as the Authority may reasonably require; and

(b) submit with his application the prescribed fee, if any.

(2) On receipt of an application in terms of subsection (1), the Authority may conduct such investigation into the matter as he considers necessary or desirable, and shall issue an air operator's certificate to the applicant if it is satisfied that—

(a) the air service to be operated by the applicant does not contravene any of the provisions of this Act or any other enactment; and

(b) the applicant's resources and the financial arrangements made by him are adequate for discharging his actual and potential obligations in respect of the air service to be operated by him;

and, if the Authority is not so satisfied, it shall refuse the application:

Provided that, before refusing an application the Authority shall notify the applicant in writing of its intention to do so and of its reasons for forming that intention, and shall afford the applicant an adequate opportunity to amend, rectify or supplement his application or to make representations in the matter.

(3) The period between the Authority's receipt of an application in terms of subsection (1) and all documents and information in support of it, and the date on which the Authority notifies the applicant of its decision or proposed decision in terms of subsection (2) shall not exceed ninety days unless the applicant consents to an extension of the period.

51. Form, content and duration of air operator's certificate

(1) An air operator's certificate shall be in the form prescribed and shall contain such conditions as may be prescribed or as the Authority may specify.

(2) An air operator's certificate shall be valid for such period, not exceeding two years, as the Authority may specify in the certificate:

Provided that, if the holder of a certificate applies, at least thirty days before its expiry, for the issue of a new one, the certificate shall remain valid until the Authority notifies the holder of the result of his application.

52. Variation of air operator's certificate

(1) Subject to this section, the Authority may at any time amend an air operator's certificate or any term or condition of a certificate—

(a) to correct any error in the certificate; or

(b) if the holder requests the amendment; or

(c) if the Authority considers the amendment necessary to reflect the true nature of the air service which the holder is operating; or

(d) if for any other reason the Authority considers the amendment necessary or desirable in the public interest.

(2) Before amending an air operator's certificate in terms of subsection (1), otherwise than at the request of the holder, the Authority shall notify the holder in writing of the nature of the amendment it proposes to make and of its reasons for wishing to make it, and shall give the holder an adequate opportunity to make representations in the matter.

(3) If the Authority refuses to amend an air operator's certificate at the request of the holder, it shall, within ten days after reaching its decision, notify the holder in writing of the decision and of the reasons for it.

53. Cancellation of air operator's certificate

(1) Subject to subsection (2), the Authority may, by notice in writing to the holder cancel an air operator's certificate if the holder so requests or if the Authority has reasonable grounds for believing that—

(a) the certificate was issued in error or through fraud or the misrepresentation of a material fact by the holder; or

(b) the holder has contravened any provision of this Act or of any other enactment relating to aviation; or

(c) the holder misrepresents the service which he offers to the public; or

(d) the holder is operating an air service that is not authorized by the certificate, or

(e) the holder has ceased to operate the air service specified in the certificate; or

(f) the holder's resources and the financial arrangements made by him are no longer adequate for discharging his actual and potential obligations in respect of the air service operated by him; or

(g) the holder has not complied with any instruction, requirement or condition imposed on him by the Authority in terms of this Act; or

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(h) the holder's operations are unsafe or compromise public safety; or

[paragraph (h) added by section 14 of Act 10 of 2018]

(i) the aircraft or related equipment used by the holder are not or are not being designed, constructed, repaired, overhauled, maintained, operated or used to the extent necessary to render the holder's aircraft airworthy or to avoid endangering lives; or

[paragraph (i) added by section 14 of Act 10 of 2018]

(j) the holder has otherwise become an unfit person to hold an air operator's licence.

[paragraph (j) added by section 14 of Act 10 of 2018]

(2) Before cancelling an air operator's certificate in terms of subsection (1), otherwise than at the holder's request, the Authority shall notify the holder, in writing, that it proposes to cancel the certificate and of its reasons for doing so, and shall afford the holder an adequate opportunity to make representations in the matter.

54. No derogation from other laws re operation of air services

The requirements of this Part shall be construed as additional to, and not as substituting for, the provisions of any other enactment relating to the operation of air services.

Part IX – Investigation of occurrences

55. Appointment and functions of Chief Investigator of Accidents and accident investigators

(1) There shall be a Chief Investigator of Accidents and such accident investigators as may be necessary for the purposes of this Part, whose offices shall be public offices and form part of the Public Service, and who shall (subject to subsection (5)) all be employed in the Ministry that is responsible for administering this Act.

(2) The Chief Inspector of Accidents and every accident investigator shall have or have held a professional pilot's qualification, or an aeronautical engineering qualification, or an air traffic control qualification or experience in one of the specialised areas of aviation such as operations, aerodynamics or aircraft design.

(3) The functions of the Chief Investigator of Accidents referred to in subsection (1) shall be—

(a) to investigate and determine the causes of all occurrences and to report thereon to the Minister; and

(b) to recommend to the Authority and the Minister measures for preventing and dealing with occurrences; and

(c) to ensure the proper co-ordination of measures to prevent and deal with occurrences; and

(d) to conduct such inspections and carry out such investigations as may be necessary or desirable to ensure that measures for preventing and dealing with occurrences are being implemented; and

(e) to perform such other functions as may be prescribed; and

(f) to co-operate with authorities and agencies outside Zimbabwe in the exercise of his or her functions under this section.

(4) Accident investigators shall perform, subject to the directions of the Chief Investigator, such of his or her functions as he or she may assign to them.

(5) Until such time as a substantive Chief Investigator of Accidents who is qualified in terms of subsection (2) is identified and appointed, the Authority shall, at the request of the Minister, second to the Ministry that is responsible for administering this Act an employee of the Authority who has any of the qualifications referred to in subsection (2) to be the Chief Investigator of Accidents for an initial period not exceeding twenty-four months and, if needed, for subsequent consecutive periods not exceeding twelve months at a time.

(6) The Chief Investigator of Accidents referred to in subsection (5) shall continue to be paid by the Authority and have the same conditions of service as are applicable to other employees of the Authority of his or her seniority within the Authority, but he or she shall otherwise be answerable to the head of the Ministry that is responsible for administering this Act and be subject to the discipline of the Civil Service while he or she is so seconded.

(7) Until such time as one or more substantive accident investigators who are qualified in terms of subsection (2) are identified and appointed, subsections (5) and (6) shall apply to the secondment of such investigators as they apply to the secondment of an Chief Inspector of Accidents in terms of those subsections.

(8) In the event of an occurrence the Minister may, at the request of the Chief Investigator of Accidents, request the Authority to second to the Ministry that is responsible for administering this Act one or more employees of the Authority who has any of the qualifications referred to in subsection (2) to assist the Chief Investigator as investigators for the duration of an investigation into the causes of the occurrence, and subsection (6) shall apply to the secondment of such investigators as they apply to the secondment of an Chief Investigator of Accidents.

(9) For the avoidance of doubt it is declared that no employee of the Authority who is seconded to the Ministry in terms of this section shall, by reason of such secondment or anything done in good faith pursuant to such secondment, be dismissed or penalised or suffer any diminution in his or her conditions of service with the Authority upon the termination of such secondment.

[section 55 substituted by section 15 of Act 10 of 2018]

55A. Expenses of investigation of occurrences

(1) For the purpose of investigating an occurrence, the Chief Investigator of Accidents shall have power to require the Authority to pay any moneys from the Accidents and Occurrences Contingency Account referred to in section 32(2)(a) the expenses of—

(a) retaining any person whose specialist or expert knowledge or skills are required for the investigation of the occurrence and the determination of its causes; and

(b) having any item or sample connected with the occurrence tested inside or outside Zimbabwe; and

(c) doing any other thing necessary to discover the causes of any occurrence and to complete the investigation pertaining thereto.

(2) At the conclusion of an investigation in respect of which any moneys have been paid from the Accidents and Occurrences Contingency Account in terms of subsection (1), the Chief Investigator of Accidents shall, in a written report to the head of the Ministry responsible for administering this Act, render an account of the manner in which he or she has expended the moneys.

(3) The head of the Ministry shall copy the report referred to in subsection (2) to the Board, which may, through the head of the Ministry, require the Chief Investigator of Accidents to answer any questions put to him or her in writing by the Board that the Board may wish to have answered in connection therewith.

[section 55A inserted by section 15 of Act 10 of 2018]

56. Powers of entry, inspection, etc.

(1) For the purposes of investigating an occurrence, an investigator may, subject to this section—

(a) enter and inspect any land or premises—

(i) in or on which the occurrence occurred; or

(ii) in or on which he has reasonable grounds for believing there is an article, record or document pertaining to an aircraft concerned in the occurrence; and

(b) take possession of the flight recorder or any other article, including a record or document, pertaining to an aircraft concerned in the occurrence; and

(c) examine and make extracts from or copies of any record or document pertaining to an aircraft concerned in the occurrence; and

(d) require any person—

(i) who witnessed the occurrence, to provide such information concerning the occurrence as the person can provide;

(ii) who has control or custody of any record or document pertaining to an aircraft concerned in the occurrence, to explain any entry in the record or document.

[subsection (1) amended by section 20 of Act 10 of 2018]

(2) An investigator shall not enter or search any land or premises in terms of subsection (1) without the consent of the owner or occupier, unless—

(a) the entry or search is necessary in the interests of defence, public safety, or public order; or

(b) there are reasonable grounds for believing that the search or entry is necessary for the prevention, investigation or detection of an offence under this Act, or for the seizure of property which is the subject-matter of such an offence or evidence relating to such an offence.

[subsection (2) amended by section 20 of Act 10 of 2018]

(3) An investigator shall not retain any article taken in terms of subsection (1) for longer than is necessary for the purposes of his investigation or any trial or inquiry arising out of his investigation.

[subsection (3) amended by section 20 of Act 10 of 2018]

57. Authority to provide assistance to inspectors

The Authority, if required to do so by the Chief Investigator shall provide all such facilities and assistance as it is able for the purpose of investigating any occurrence.

[section 57 amended by section 20 of Act 10 of 2018]

57A. Non-disclosure of records and recordings

An investigator shall ensure that information collected in the course of an investigation, including information collected from Cockpit Voice Recorders (CVR), and airborne image recordings shall not be disclosed or made available to any other person other than in connection with an investigation carried out under this Part provided that the final report of investigations must be submitted to the Minister and published thirty days after the investigation.

[section 57A inserted by section 15 of Act 8 of 2024]

58. Boards of inquiry into occurrences and other matters

(1) The Minister, with the approval of the Minister responsible for justice, may appoint a board consisting of a judge, magistrate or other legally-qualified person together with one or more other persons to conduct an inquiry into any occurrence or any other matter concerning aviation or aircraft.

(2) A board appointed in terms of subsection (1) to inquire into an accident that occurred in Zimbabwe or into a matter situated within Zimbabwe shall have power to summon and examine witnesses on oath and to call for the production and grant inspection of books, logs, certificates, licences and other documents.

(3) The Magistrates Court Act *[Chapter 7:10]* and the rules made thereunder shall apply, *mutatis mutandis*, to—

(a) procuring the attendance of witnesses before a board appointed in terms of subsection (1); and

(b) the examination of witnesses before a board appointed in terms of subsection (1), and the production of books and documents and the like to such a board; and

(c) the punishment of persons who fail or refuse to attend or give or produce evidence before such a board, or who give false evidence to such a board;

and the chairman of the board shall have power to sign such documents as are necessary for the purpose of the inquiry in the same manner as a magistrate or the clerk of a magistrates court has power to do.

(4) Any process to be served for the purposes of an inquiry conducted by a board appointed in terms of subsection (1) shall be served by the messenger of the magistrates court of the province in which the person upon whom service is made resides.

(5) This section shall not be construed as affecting the functions of magistrates in terms of the Inquests Act *[Chapter 7:07]*, but where an occurrence involving loss of life is inquired into under this Act by a magistrate, the inquiry held under this Act may be a joint inquiry of the board and inquest of the magistrate.

59. Obstruction of investigators

(1) Any person who hinders or obstructs an investigator in the exercise of his or her functions shall be guilty of an offence and liable to—

(a) a fine not exceeding level 2 or imprisonment for one year or both, where the person hindering or obstructing the investigator does not use physical force or violence in doing so;

(b) a fine not exceeding level 5 or imprisonment for 5 years, or where the person alleged to be hindering or obstructing the inspector uses physical force or violence against the inspector in doing so.

(2) Hindering or obstructing an investigator shall also be a civil default and be punishable in accordance with the Third Schedule.

[section 59 amended by Act 22 of 2001, by section 20 of Act 10 of 2018 and substituted by section 16 of Act 8 of 2024]

59A. Aviation safety surcharge

(1) For the purpose of section 55A, there is hereby levied an aviation safety surcharge in accordance with this section.

(2) With effect from such date as the Minister, in consultation with the Board, shall fix by a notice in a Statutory Instrument (hereinafter called the "surcharge notice"), a surcharge is levied at the rate to be prescribed in the surcharge notice (not exceeding zero comma five *per centum* of the amount upon which it is surcharged, rounded upwards to the nearest unit of a dollar) upon every fee, levy and charge payable to the Authority for registrations effected, licences, permits or certificates issued, services rendered or anything else done by it under this Act (but not including the Airport Departure fee prescribed in Statutory Instrument 165 of 2003 or any other regulations that may be substituted for the same).

(3) The Minister may in the surcharge notice, after consultation with the Board—

(a) exclude for any compelling reason from the scope of the aviation safety surcharge (whether indefinitely or temporarily) any class, category or description of registrations effected, licences, permits or certificates issued, services rendered or anything else done by the Authority under this Act for which any fee, levy or charge is payable;

(b) charge different rates of aviation security surcharge for different classes, categories or descriptions of registrations effected, licences, permits or certificates issued, services rendered or anything else done by the Authority under this Act for which any fee, levy or charge is payable.

(3) The Authority shall collect and account for the aviation safety surcharge in the same manner as it collects and accounts for all fees, levies and charges payable to it, and shall credit the proceeds from the surcharge to the Accidents and Occurrences Contingency Account referred to in section 32(2)(a):

Provided that the Authority may in respect of the expenses it incurs in collecting and accounting for the aviation safety surcharge and in administering the Accidents and Occurrences Contingency Account, deduct (by way of transfer to the General Account) from the moneys standing to the credit of Accidents and Occurrences Contingency Account at the end of every financial year an amount to be stipulated in the surcharge notice, not exceeding two point five *per centum* of such moneys.

[Please note: numbering as in original.]

[section 59A added by section 16 of Act 10 of 2018]

Part X – Aerodromes

60. Interpretation in Part X

In this Part—

"**aerodrome**", authority in relation to an aerodrome, means the Minister, the Authority or any other person responsible for maintaining the aerodrome.

61. Authority may establish and maintain aerodromes

(1) Subject to this Act and any other law, the Authority may establish and maintain aerodromes and provide and maintain roads, approaches, apparatus, equipment, buildings and facilities in connection with aerodromes.

(2) The Minister, with the concurrence of the Minister of Finance, may—

(a) assign to the Authority, on such terms and conditions as he and the Authority may agree, responsibility for the maintenance of any aerodrome established by the State;

(b) transfer to the Authority, on such terms and conditions as he and the Authority may agree, any State land for the establishment or operation of an aerodrome by the Authority in terms of subsection (1).

(3) When establishing and in the course of maintaining aerodromes in terms of this section, the Authority shall have regard to the need to minimise so far as reasonably practicable—

(a) any adverse effects on the environment; and

(b) any disturbance to the public;

from noise, vibration, atmospheric pollution or any other cause attributable to the use of aircraft for the purpose of civil aviation.

(4) Nothing in this section shall be construed as preventing any person other than the Authority from establishing and maintaining an aerodrome subject, except in the case of the State, to compliance with any requirements that may be prescribed in terms of this Act or any other enactment.

62. Acquisition of land for purposes of aerodromes

(1) The Minister may acquire land and interests in and rights over land for the purpose of any aerodrome established or to be established in terms of this Act.

(2) Parts III, V and VIII of the Land Acquisition Act *[Chapter 20:10]* shall apply, *mutatis mutandis*, to any compulsory acquisition of land and interests in and rights over land in terms of subsection (1):

Provided that the Minister shall not have power to acquire, whether compulsorily or by agreement, any Communal Land or any right over or interest in Communal Land, otherwise than in accordance with the Communal Land Act *[Chapter 20:04]*.

63. Controls over use of land and water in vicinity of aerodromes

(1) Subject to this section and any other law, the Minister, on the recommendation of the Authority, may by order impose such prohibitions or restrictions on the use of any land or water in the vicinity of an aerodrome as are necessary to ensure the safety or efficiency of civil aviation.

(2) Without limiting subsection (1), an order under that subsection may provide for all or any of the following matters—

(a) requiring the demolition of any building or structure;

(b) restricting the height of any tree, structure or object;

(c) extinguishing any private right of way;

(d) requiring the closure or diversion of any road;

(e) restricting the installation of telecommunication towers, powerlines, wind turbines, cables, wires or other apparatus across, over or under any land;

[paragraph (e) substituted by section 17(a) of Act 8 of 2024]

(f) restricting the use of any electronic device; within such area in the vicinity of an aerodrome as may be specified in the order.

(g) prohibiting the erection of buildings, objects or the placement of any obstacles in areas surrounding aerodromes, which may constitute an obstruction to safe flight operations.

[paragraph (g) added by section 17(b) of Act 8 of 2024]

(3) Before issuing an order under subsection (1), the Minister shall—

(a) cause a notice to be published in two successive issues of a newspaper circulating in the area concerned and in two successive issues of the *Gazette*, setting out the general terms of the proposed order and inviting anyone who wishes to make representations in regard to it to submit his representations, in writing, to the secretary of the Ministry for which the Minister is responsible within such reasonable period as may be specified in the notice; and

(b) give due consideration to any representations submitted in response to a notice published in terms of paragraph (a).

64. Powers to enter land and take materials for purposes of aerodromes

(1) Subject to sections 57 and 71 of the Constitution and to this section, for the purposes of establishing and maintaining any aerodrome or any facilities connected therewith, an authorized person may at all reasonable times—

(a) enter upon any land and conduct such examinations and surveys as are necessary for the purpose of determining its suitability for the establishment or extension of an aerodrome or the approaches to an aerodrome or for the installation of apparatus or equipment for an aerodrome;

(b) place vehicles on any land and erect tents, huts or temporary buildings on any site convenient to him:

Provided that—

(i) where possible, before exercising the rights conferred on him by this paragraph, the authorized person shall give reasonable notice to the owner or occupier of the land concerned;

(ii) no tents, huts or temporary buildings shall be erected within five hundred metres of any dwelling-house;

(iii) if an owner or occupier of land to whom notice has been given in terms of proviso (i) objects to any site chosen for the erection of tents, huts or other temporary buildings, the matter shall be referred to a magistrate of the province, who may make such order as he considers just and reasonable;

(c) take materials from any land which is not included in any township as defined in the Land Survey Act *[Chapter 20:12]*:

Provided that—

(i) no damage shall be done to any permanent improvements on such land;

(ii) the authorized person shall not have power to acquire, whether compulsorily or by agreement, any Communal Land or any right over or interest in Communal Land, otherwise than in accordance with the Communal Land Act *[Chapter 20:04]*.

[subsection (1) amended by section 20 of Act 10 of 2018]

(2) The provisions of—

(a) subsections (2), (3) and (4) of section 11 of the Land Acquisition Act *[Chapter 20:10]* shall apply, *mutatis mutandis*, to the exercise of the powers referred to in paragraph (a) of subsection (1) and, subject to paragraph (b), compensation shall be paid to any person who suffers loss or damage through the exercise of such powers;

(b) Parts III, V and VIII of the Land Acquisition Act *[Chapter 20:10]* shall apply to the exercise of the powers referred to in paragraphs (b) and (c) of subsection (1) and to the compensation referred to in paragraph (a).

65. Reservation of aerodrome materials

(1) If an authorized person has reason to believe that a deposit of materials suitable for constructing, extending or maintaining an aerodrome is present in or on any land from which such materials may be taken in terms of this Act or any other enactment, he may, subject to this section, search the land for such materials.

(2) Before conducting a search for materials in terms of subsection (1), the authorized person shall post a notice on the ground which he proposes to search and shall give a copy of the notice to the owner of the land and to any other person having any rights over or in the land of his intention to conduct the search.

(3) A notice referred to in subsection (2) shall be in the form prescribed.

(4) The posting of a notice in terms of subsection (2) shall have the effect of prohibiting, for a period of fourteen days from the date and hour of the posting of the notice, any activity whatsoever, other than an activity that was being carried on immediately before the posting of the notice, upon the land falling within such distance, not exceeding three hundred metres, from the post carrying the notice as shall be stated in the notice:

Provided that all authorized person may permit such limited use of the land as he may determine, subject to such conditions as he may impose in granting such permission.

(5) If an authorized person discovers in or on the land reserved under subsection (4) any deposit of such materials, he shall erect upon the boundaries of the area of the deposit, or such portion of the area as may be required, beacons in the manner prescribed, and shall post upon each such beacon a notice in the form prescribed.

(6) The erection of beacons in terms of subsection (5) shall have the effect of reserving the area of land demarcated by them and of prohibiting any activity whatsoever upon the land so reserved, other than an activity that was being carried on in the area immediately before the erection of the beacons:

Provided that an authorized person may permit such limited use of the land or the removal of such quantities of the materials thereon by the owner of the land or by any other person having any rights over or in the land as that authorized person may determine, subject to such conditions as he may impose in granting such permission.

(7) An authorized person who has reserved any land in terms of this section shall—

(a) ensue that particulars of the area so reserved are sent to the mining commissioner of the district in which the land is situated; and

(b) notify the owner of the land concerned and any other person having any rights over or in the land of the particulars of the reservation, but if the whereabouts of such owner or the identity or whereabouts of such other person are unknown, the erection of the beacons and notices mentioned in subsection (5) shall be deemed to be a sufficient notification for the purposes of this subsection.

(8) Any person who, on land reserved in terms of this section, does any act which he has not been authorized to do by or in terms of this section shall be guilty of an offence and liable to a fine not exceeding level 1 or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

[subsection (8) amended by Act 22 of 2001 and by section 18(a) of Act 8 of 2024]

(9) When the materials on any land reserved in terms of this section are no longer required, the authorized person who erected the beacons and notices on the land in terms of subsection (5) shall —

(a) notify the mining commissioner of the district in which such land is situated and the owner of such land and any other person who may have been affected by its reservation; and

(b) cause the beacons and notices to be removed;

and with the removal of the beacons and notices the reservation of the land shall thereupon be deemed to have been withdrawn.

(10) Any person who, without the permission of an authorized person, removes or interferes with any beacon or notice erected in terms of this section shall be guilty of an offence and liable to a fine not exceeding level 1 or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection (10) amended by Act 22 of 2001]

[subsection (10) amended by section 18(b) of Act 8 of 2024]

(11) Subject to subsection (12), the Minister shall pay compensation to any person who is affected by the exercise of an authorized person's functions in terms of this section.

(12) Parts V and VIII of the Land Acquisition Act *[Chapter 20:10]* shall apply, *mutatis mutandis*, to the payment of compensation by the Minister in terms of subsection (11):

Provided that any reference in Part V of that Act to the date of publication of a preliminary notice in the *Gazette* shall be construed as a reference to the date of the exercise by an authorized person of the power which gave rise to the claim for compensation.

(13) The powers conferred by this section shall not include power to acquire, whether compulsorily or by agreement, any Communal Land or any right over or interest in Communal Land, otherwise than in accordance with the Communal Land Act *[Chapter 20:04]*.

66. Customs, immigration and health facilities at aerodromes

(1) Every aerodrome authority shall provide suitable facilities for customs, immigration and health services at its aerodrome, if required to do so by the Director of Customs and Excise, the Chief Immigration Officer or the Secretary of the Ministry responsible for health, as the case may be.

(2) The terms and conditions on which facilities are provided in terms of subsection (1) shall be subject to agreement between the State and the aerodrome authority concerned.

67. Security at aerodromes

(1) Every aerodrome authority shall ensure that passengers and cargoes at its aerodrome are screened for security purposes by such methods and in accordance with such standards as may be prescribed.

(2) Every aerodrome authority shall be responsible for the security of its aerodrome and for the security of all equipment and installations connected with its aerodrome.

(3) In the exercise of its responsibilities under subsections (1) and (2), an aerodrome authority may enter into arrangements with the Commissioner of Police for the policing of its aerodrome:

Provided that any such arrangement shall be subject to approval by the Minister and the Minister to whom the administration of the Police Act *[Chapter 11:10]* has been assigned.

(4) Subject to section 57 of the Constitution, for the purpose of ensuring the safety of civil aviation the Authority, through its employees and agents, may enter and inspect any aircraft, whether registered in Zimbabwe or elsewhere, at any aerodrome in Zimbabwe.

[subsection (4) amended by section 20 of Act 10 of 2018]

(5) Any person who contravenes subsection (1) shall be guilty of a civil default and be punishable in accordance with the Third Schedule.

[subsection (5) added by section 19 of Act 8 of 2024]

68. Offences at aerodromes

Any person who—

(a) boards an aircraft at an aerodrome without having submitted to a search of his person and additionally, or alternatively, his property, if he has been requested to submit to such a search by an employee or agent of the aerodrome authority; or

(b) knowingly and without the permission of the aerodrome authority, enters any part of an aerodrome to which the aerodrome authority has prohibited access by the public; or

(c) hinders or obstructs an employee or agent of the aerodrome authority in the exercise of his functions in terms of this Act;

shall be guilty of an offence and liable to a fine not exceeding level 1 or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by Act 22 of 2001]

[section 68 amended by section 20 of Act 8 of 2024]

Part XI – General

69. Effect of Chicago Convention

(1) The Chicago Convention shall have effect within Zimbabwe.

(2) Subject to this Act, the Minister may do all things that, in his opinion, are necessary or expedient to give effect to the Chicago Convention in Zimbabwe.

69A. Powers of entry, inspection, etc. by safety and security oversight inspectors

(1) A safety or security oversight inspector designated as an authorised officer shall have unlimited and unrestricted access to enter and inspect any aircraft or aerodrome, or any land or premises without warrant or the consent of the owner or occupier thereof (but subject to the production on demand of an identity document issued by the Authority), if he or she has reasonable grounds for believing that—

(a) the inspection, entry or search is necessary in the interests of aviation safety; or

(b) the inspection, search or entry is necessary for the prevention, investigation or detection of an offence under this Act, or for the seizure of property which is the subject matter of such an offence or which may be evidence relating to such an offence.

[subsection (1) substituted by section 21(a) of Act 8 of 2024]

(2) For the purposes of subsection (1) a safety and oversight security inspector may—

(a) take possession of any article, record or document; and

(b) examine and make extracts from or copies of any record or document; and

(c) require any person—

(i) present at, within or about the aircraft or aerodrome, or within the land or premises wherein or whereon it is situated or any other aviation facility, to provide such information concerning the purpose for which the inspection is being conducted as the person can provide;

[subparagragh (i) amended by section 21(b) of Act 8 of 2024]

(ii) who has control or custody of any record or document pertaining to the purpose for which the inspection is being conducted, to explain any entry in the record or document;

and

(d) prevent an aircraft from flying, whether temporarily or indefinitely; and

(e) prohibit any person from exercising the privileges of an air operator's certificate or other aviation licence or permit, whether temporarily or indefinitely.

(3) An inspector shall not retain any article taken in terms of subsection (1) or (2) for longer than is necessary for the purposes of his or her inspection.

(4) In any case of urgency affecting aviation safety or security, and pending the adoption of more definitive measures under this Act, the Director-General may issue (generally or in relation to a specific case or cases) a direction ordering to be done anything referred to in subsection (2)(d) and (e) and having effect for a period not exceeding seven days at a time.

(5) The Director-General shall as soon as possible after issuing a direction under subsection (4) publish it in the same way as a notice referred to in section 45(3) is published.

(6) Any person who hinders or obstructs a safety and oversight security inspector in the exercise of his or her functions, or who contravenes a direction referred to in subsection (4), shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[section 69A inserted by section 17 of Act 10 of 2018]

70. Liability for trespass or nuisance, and responsibility for damage

(1) No action shall lie in respect of trespass or nuisance, solely on account of—

(a) the flight of an aircraft over any property at a height above the ground which is reasonable, having regard to wind, weather and all other circumstances of the case; or

(b) the ordinary incidents of a flight referred to in paragraph (a);

so long as the requirements of this Act and of the Convention are duly complied with.

(2) Where material loss or damage is caused to any person or property on land or water—

(a) by an aircraft while in flight, taking off or landing; or

(b) by a person in or an article or person falling from, an aircraft while in flight, taking off or landing;

then, unless the loss or damage was caused or contributed to by the negligence of the person by whom it was suffered, damages in respect of the loss or damage shall be recoverable without proof of negligence or intention or other cause of action, as if the loss or damage had been caused by the wilful act, neglect or default of the owner of the aircraft:

Provided that where material loss or damage is caused as aforesaid in circumstances in which—

(a) damages are recoverable in respect of the loss or damage by virtue only of this subsection; and

(b) a legal liability is created in some person other than the owner to pay damages in respect of the said loss or damage;

the owner shall be entitled to be indemnified by that other person against any claim in respect of the said loss or damage.

71. Conveyance of mail by air

(1) Subject to the Postal and Telecommunication Services Act *[Chapter 12:02]*, no mails shall be carried by any aircraft without the consent in writing of the Postmaster-General.

(2) The provisions of the Postal and Telecommunication Services Act *[Chapter 12:02]* relating to the dispatching, conveying and delivering of mails and all incidental services relating thereto shall apply to the dispatching, conveying and delivering of mails by aircraft, subject to such modifications, adaptations and consequential and supplementary provisions as the Minister may specify by statutory instrument.

72. Patent claims against aircraft not protected under Chicago Convention

(1) In this section—

"owner" includes the actual owner of an aircraft and any person claiming through or under him;

"passage" includes all landings and stoppages in the course or for the purpose of a flight.

(2) If it appears to the High Court that a foreign aircraft, which is not an aircraft to which section seventy-three applies, and which is making a passage through or over Zimbabwe, infringes in itself or in any part of it any invention, design or model which is entitled to protection in Zimbabwe, the High Court may, on the application of an interested party, order the detention of the aircraft pending the institution of legal proceedings in respect of the alleged infringement or until the owner of the aircraft deposits or secures a sum in respect of the alleged infringement.

(3) Upon the deposit or securing of an amount in terms of subsection (2), the aircraft concerned shall not, during the continuance or in the course of its passage, be subject to further detention in respect of the same cause of action.

(4) The sum to be deposited or secured in terms of subsection (2) shall be such sum as may be agreed between the parties or, in default of agreement, as may be fixed by the High Court, and it shall be paid or secured to the applicant in such manner as the parties may agree or the High Court may direct.

73. Exemption from seizure of certain aircraft on patent claims

(1) In this section—

"exempted aircraft" means an aircraft or a member of any class of aircraft, which the Minister has declared, by notice in the *Gazette*, to be an exempted aircraft for the purposes of this section.

(2) Any lawful entry into Zimbabwe, or any lawful transit across Zimbabwe, with or without landing, of an exempted aircraft shall not entail its seizure or detention, or any proceedings being brought against its owner or operator, or any other interference therewith by or on behalf of any person in Zimbabwe, on the ground that the construction, mechanism, parts, accessories or operation of such aircraft is or are an infringement of any patent, design or model.

(3) The importation into, and storage in, Zimbabwe of spare parts and spare equipment for an exempted aircraft, and their use and installation in the repair of an exempted aircraft, shall not entail any seizure or detention of the aircraft or of the spare parts or equipment, or any proceedings being brought against their owners or operators, or any other interference with the aircraft by or on behalf of any person in Zimbabwe on the ground that the spare parts or equipment or their installation is or are an infringement of any patent, design or model:

Provided that this subsection shall not apply in relation to any spare parts or spare equipment which are sold or distributed in Zimbabwe or are exported from Zimbabwe for sale or distribution.

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74. Detention of aircraft for certain offences or upon non-payment of certain dues

(1) If the owner, pilot or person in charge of any aircraft commits any offence under this Act, or if there are reasonable grounds for suspecting that such an offence has been committed or attempted or is about to be committed or attempted, any—

(a) officer of the Department of Customs and Excise; or

(b) commissioned police officer; or

(c) police officer authorized by a commissioned police officer;

may, pending the trial of the charge, detain the aircraft from or in respect of which the offence was or is about to be committed.

(2) If any fees or charge payable to the Authority in respect of an aircraft remains unpaid after demand by the Authority, the Authority may—

(a) detain the aircraft concerned; or

(b) detain any other aircraft owned or operated by the person by whom the fee or charge is payable; pending payment of the fee or charge.

(3) Where recognizances are entered into or security deposited to the satisfaction of a magistrate within whose province an aircraft has been detained in terms of subsection (1) or (2), the magistrate may, if satisfied that the ends of justice will not thereby be prejudiced, order the release of the aircraft from further detention.

(4) Any person who knowing that an aircraft is being detained in terms of subsection (1), removes such an aircraft or causes it to be removed shall be guilty of an offence and liable to a fine not exceeding level 1 or to imprisonment for a period not exceeding 5 years.

[subsection amended by Act 22 of 2001]

[subsection (4) substituted by section 22(a) of Act 8 of 2024]

(5) No officer of the Department of Customs and Excise who is authorized to grant clearance to any aircraft shall grant clearance to an aircraft while it is detained in terms of subsection (1) or (2).

(6) Contravening subsection (1) shall also constitute a civil default, punishable in accordance with the Third Schedule.

[subsection (6) added by section 22(b) of Act 8 of 2024]

75. Restriction on use of "approved" in connection with flying schools

(1) No person shall use the word "approved", or any other word which suggests approval by the State, in connection with—

(a) any institution at which instruction in flying as a pilot or member of the operating crew of an aircraft is provided; or

(b) any course of instruction referred to in paragraph (a);

except in accordance with such conditions as the Minister may prescribe in regulations.

(2) Any person who contravenes subsection (1) shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by Act 22 of 2001]

[section 23 purports to amend section 75 but amends section 76, by deleting the expression "level 6" and substituting it with the expression "level 5". However, there is no "level 6", but instead we have "level 5".]

section 23 of Act 8 of 2024 purports to amend section 75 but amends section 76"

76. Dangerous flying

Any person who—

(a) flies an aircraft; or

(b) causes or permits an aircraft to be flown;

in such a manner as to be the cause of unnecessary danger to any person or property on land or water shall be guilty of an offence and liable to a fine not exceeding level 5 or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

[subsection amended by Act 22 of 2001]

77. Territorial jurisdiction of courts

Any offence under this Act and any offence committed on a locally registered aircraft shall, for purposes relating to the jurisdiction of a court to try the offence, be deemed to have been committed in any place where the accused person happens to be:

Provided that, if any such offence is committed within Zimbabwe, the offence may be tried by any court having jurisdiction where the offence was committed.

78. Appeals

(1) If any person is aggrieved by a decision of the Authority or any officer or employee of the Authority in the exercise of any function conferred on the Authority, the officer or the employee, as the case may be, under regulations made in terms of section seventy-nine, he may, within twenty-eight days after being notified of the decision, appeal in writing to the Minister, submitting with his appeal such fee as may be prescribed.

(2) For the purpose of determining an appeal noted in terms of subsection (1), the Minister may require the Board, the officer or the employee concerned, as the case may be, to furnish him with the reasons for the decision that is the subject of the appeal and a copy of any evidence upon which the reasons are based.

(3) The Minister, after due and expeditious inquiry, may make such order on any appeal noted in terms of subsection (1) as he considers just.

(4) An appeal shall lie to the Administrative Court against any order of the Minister in terms of subsection (3).

(5) The Board or the officer or employee whose decision was the subject of the appeal, as the case may be, shall take all necessary steps to comply with any order made by the Minister in terms of subsection (3) or by the Administrative Court on an appeal in terms of subsection (4).

(6) Where an appeal has been noted in terms of subsection (1) against—

(a) the cancellation of any registration or licence, the decision of the Board or the officer or employee concerned, as the case may be, shall be suspended until the appeal has been finally determined;

(b) a refusal to renew any registration or licence, the Minister may direct that the registration be temporarily renewed or that the licence be temporarily extended, as the case may be, until the appeal has been finally determined.

78A. Standard scale of fines and monetary penalties

(1) In this section—

"**fine**" means a monetary criminal penalty imposed by a criminal court;

"**monetary penalty**" means a sum of money leviable in respect of a civil default;

"**standard scale of fines and monetary penalties**" means the standard scale of fines and monetary penalties referred to in subsection (2), as amended or replaced from time to time.

(2) To avoid doubt, the standard scale of fines and monetary penalties prescribed under this section applies to the exclusion of the standard scale of fines provided for in the Criminal Law Codification and Reform Act [*Chapter 9:27*].

(3) Subject to subsection (4) the Minister with the concurrence of the Minister responsible for Justice, may publish a statutory instrument setting forth a standard scale of fines and monetary penalties, which shall specify—

(a) different levels of fines and monetary penalties, each level being designated by a number; and

(b) in respect of each level of fine or monetary penalty, the monetary amount of the fine.

(4) Subject to subsection (5) the Minister may with the concurrence of the Minister responsible for Justice, by statutory instrument, amend or replace the standard scale of fines and monetary penalties, whenever the Minister considers such an amendment or replacement to be necessary as a result of a change in the purchasing power of money or for any other reason:

Provided that—

(i) an increase in the monetary amount corresponding to any level in the standard scale of fines and monetary penalties shall not have the effect of increasing the fine or the monetary penalty to which any person is liable in respect of an offence or civil default committed before the increase came into effect;

(ii) a reduction in the monetary amount corresponding to any level in the standard scale of fines or monetary penalties shall reduce the fine or monetary penalty to which any person is liable in respect of an offence committed before the reduction came into effect, if the penalty is imposed after that date.

(5) Where this Act provides that a person who is guilty of an offence or civil default is liable to a fine or a maximum fine or monetary penalty by reference to a level on the standard scale, the amount of the fine or monetary penalty or the maximum fine, as the case may be, that may be imposed shall be fine or the monetary amount specified in respect of that level in the standard scale of fines.

(6) Notwithstanding any other provision of this section, whenever—

(a) a court imposes a sentence of a fine upon an offender, the court shall specify the monetary amount of the fine and shall not specify the fine by reference to a level on the standard scale of fines;

(b) the Authority imposes a monetary penalty upon a defaulter, the civil penalty order containing the monetary penalties imposed by the Authority shall specify the monetary amount of the monetary penalty and shall not specify the penalty by reference to the standard scale of fines.

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(7) Regulations made under section 79 may—

(a) create any offence for which the penalty may be a fine of a specified level not exceeding level 4 or imprisonment for a period not exceeding 5 years or both such fine and such imprisonment;

(b) create any civil default—

(i) that conforms in its expression to any category (1-5) of penalty in the Third Schedule, whose monetary penalty shall be of a specified level not exceeding level 4;

(ii) that does not conform in its expression in every respect to any category referred to in sub paragraph (1):

Provided that the level of the monetary penalty must not exceed level 4 and any criminal penalty specified in default of any obligation imposed by the civil penalty order must not exceed a fine of level 4 or imprisonment not exceeding 5 years, or both such fine and such imprisonment.

(8) Any breach of this Act or regulations made thereunder may be specified to be a criminal offence or a civil default or both and where the breach is specified to be both, the processing of the civil default shall be pursued independently or alongside the prosecution of the offence.

(9) The Fourth Schedule incorporates the standard scale of fines and levels of monetary penalties applicable to this Act as amended or replaced from time to time under this section.

(10) When the Minister wishes in accordance with subsection (4), to amend or replace the Fourth Schedule, the Minister shall lay the draft statutory instrument amending or replacing the Fourth Schedule before the House of Assembly, and if the House makes no resolution against publication of the draft statutory instrument within 14 sitting days from the date when it was laid before the House, that the Minister may at any time thereafter publish it as a statutory instrument in the *Gazette*.

[section 78A inserted by section 24 of Act 8 of 2024]

79. Regulations

(1) The Minister, after consultation with the Board, may make regulations prescribing anything which in terms of this Act is required or permitted to be prescribed or which, in his opinion, is necessary or convenient to be prescribed for carrying out or giving effect to this Act.

(2) Regulations made in terms of subsection (1) may provide for—

(a) carrying out and giving effect to the Chicago Convention;

(b) securing the safety, efficiency and regularity of air navigation and the safety of aircraft and of persons and property carried therein, and the detention of aircraft for any purpose specified in this paragraph;

(c) air traffic control procedures and services;

(d) the provision of navigational aids and the standards thereof;

(e) the areas within which or the aerodromes at which aircraft coming from any place outside Zimbabwe shall land, and the areas within which or the aerodromes from which aircraft shall depart to any place outside Zimbabwe;

(f) the classification and use of airspace and the control and use of air routes;

(g) rules of the air;

(h) the conditions under which any aircraft may be used or operated or under which any act may be performed in or from an aircraft;

(i) the registration, licensing, marking and inspection of aircraft;

(j) the design, construction, repair, overhaul, maintenance, operation and use of aircraft and related equipment;

(k) the licensing or certification of persons employed in the inspection, supervision, repair, overhaul, maintenance, operation and use of aircraft;

(l) the conditions under which persons or cargo of any kind may be transported by aircraft;

(m) the regulation, licensing, registration, inspection and use of aerodromes and other places set apart for the use of aircraft, and scales of charges for services and facilities provided at such aerodromes and places;

(n) the prohibition or regulation of—

(i) the erection or construction of any object; or

(ii) the emission of any smoke, gas, particles or other substance; or

(iii) the carrying on of any activity;

within a prescribed distance from any aerodrome, where the prohibition or regulation is reasonably necessary to ensure the safety of aircraft at or near the aerodrome;

(o) subject to subsection (3), the taxes and fees to be paid by persons departing from any aerodrome, and exemptions from or refunds of any such tax or fee;

(p) the licensing of persons engaged in the design, manufacture, distribution, maintenance, approval, certification or installation of aeronautical products;

(q) minimizing or preventing interference with the use or effectiveness of radio, electronic or other apparatus or equipment used in connection with aircraft, and prohibiting or regulating the use of any apparatus or equipment or the display of signs or lights liable to endanger aircraft;

(r) the issue and renewal of any certificate or licence required under this Act or under the Chicago Convention, including the examinations and tests to be undergone and the form, custody, production, cancellation, suspension endorsement and surrender of any such certificate or licence;

(s) the exemption of aircraft or persons from any of the provisions of this Act or of the Chicago Convention;

(t) the recognition of certificates of airworthiness, certificates of competency and licences issued or recognized by any state which is a party to the Chicago Convention;

(u) fees and charges to be paid in respect of licences or certificates issued, registrations effected, services or facilities provided or any other matter or thing done under or for the purposes of this Act;

(v) the notification and investigation of occurrences;

(w) prohibiting access to or interference with aircraft which is the subject of an occurrence, and authorizing any person, so far as may be necessary for the purposes of an investigation, to have access to, examine, remove, take measures for the preservation of or otherwise deal with any such aircraft;

(x) the publication and dissemination of regulations and information applicable to aircraft and aviation;

(y) the establishment of civil aviation security standards as advised by the National Civil Aviation Security Committee or which, in the opinion of the Minister, are necessary to

enhance the security programmes referred to in section 44A and to meet international criteria in that field;

[paragraph (y) substituted by section 18 of Act 10 of 2018]

(z) the transfer of certain functions from the State of registry of aircraft to the State of the operator of an aircraft in the case of lease, charter or interchange or any similar arrangements with respect to such aircraft pursuant to Article 83bis of the Chicago Convention;

[paragraph (z) added by section 18 of Act 10 of 2018]

(aa) the assignment or delegation to the Authority of any function referred to in paragraphs (a) to (z).

[paragraph (aa) added by section 18 of Act 10 of 2018]

(bb) giving effect to the Yamoussoukro Decision (an African Union Treaty signed on 14 November, 1999, which established a framework for liberalisation of and fair competition among air transport services among African Countries).

[paragraph (bb) added by section 25 of Act 8 of 2024]

(3) The Minister shall not make regulations providing for any matter referred to in paragraph (o) of subsection (2) without the approval of the Minister responsible for finance.

(4) Regulations made in terms of subsection (1) and providing for the licensing of aerodromes shall require the licensing authority to have regard to the need to minimise so far as reasonably practicable—

(a) any adverse effects on the environment; and

(b) any disturbance to the public;

from noise, vibration, atmospheric pollution or any other cause attributable to the use of aircraft for the purpose of civil aviation.

(5) Regulations made under this section may prescribe for any contraventions thereof—

(a) criminal penalties not exceeding a fine of level fourteen or imprisonment for a period of five years or both such fine and such imprisonment;

(b) civil penalties of a prescribed amount leviable by the Authority for each day during which a contravention continues, not exceeding a prescribed number of days:

Provided that the Authority shall have power to waive the payment or refund the whole or part of any penalty prescribed under this paragraph if it is satisfied that the contravention was not wilful, or not due to the want of reasonable care.

[subsection inserted by section 7 of Act 5 of 2011]

(6) A civil penalty prescribed under subsection (5)(b) shall constitute a debt due to the Authority by the person against whom it is levied, and shall at any time after it becomes due, be recoverable in a court of competent jurisdiction by proceedings in the name of the Authority:

Provided that, for the avoidance of doubt, it is declared that the person against whom a civil penalty is levied may challenge the validity of the debt representing the civil penalty before the court in which the debt is sought to be recovered.

[subsection inserted by section 7 of Act 5 of 2011]

80. Exemption from regulations

The Minister may, by notice in the *Gazette*, exempt any person, aircraft, aerodrome, facility or service from any provision of any regulations made in terms of section seventy-nine, where the

Minister is satisfied that the exemption is in the public interest and is not likely to affect the safety of aviation.

(2) The Minister may make regulations including powers of the Director General to exempt any person, aircraft, aerodrome, facility or service from any provision of any regulations made in terms of section 79, where the Director-General is satisfied that the exemption is necessary to prevent delays in aviation and is not likely to affect the safety of aviation.

[subsection (2) added by section 26 of Act 8 of 2024]

(3) Any exemption granted by the Director-General under the regulations made in terms of subsection (2) shall be submitted to the Minister for review within 7 days of being granted.

[subsection (3) added by section 26 of Act 8 of 2024]

Part XIA – Regulation Development Committee

[Part XIA inserted by section 27 of Act 8 of 2024]

80A. Interpretation in Part XIA

(1) In this Part, unless the context requires otherwise—

"**Aeronautical Information Publication**" means a publication issued by or with the Authority and containing aeronautical information of a lasting character essential to air navigation;

"**Category A difference**" means a difference when the national regulation is more stringent than the corresponding Standard and Recommended Practice, or imposes an obligation within the scope of the Annex which is not covered by a Standard and Recommended Practice;

"**Category B difference**" means a difference when the national regulation is different in character from the corresponding ICAO Standard and Recommended Practice, or when the national regulation differs in principle, type or system from the corresponding SARP, without necessarily imposing an additional obligation;

"**Category C difference**" means a difference when the national regulation is less protective than the corresponding SARP; or when no national regulation has been promulgated to address the corresponding SARP, in whole or in part;

"**SARPs**" stands for Standard and Recommended Practices;

"**REDCOM**" means Regulatory Development Committee.

[section 80A inserted by section 27 of Act 8 of 2024]

80B. Establishment and Composition of REDCOM

(1) REDCOM is hereby established by this section.

(2) The Regulations Development Committee shall consist of not less than twenty members but not more than twenty-five members who shall be appointed by the Minister in consultation with the Board and shall include the following—

(a) the Chairperson who shall be the head of the department of the Authority responsible for flight safety and standards and the Vice Chairperson who shall be an employee in that department nominated by the Chairperson;

(b) at least eight (8) civil aviation Industry representatives (representing commercial, general aviation, helicopter operation, ground handling entities, maintenance and Aviation Training Organisations Industry) nominated by an organisations which, in the opinion of the Minister, represent stakeholders in those sectors:

(c) at least eight (8) employees nominated by the Director-General from the Authority representing the following sections—

(i) Personnel Licensing;

(ii) Flight Operations (including Dangerous Goods);

(iii) Airworthiness;

(iv) Air Navigations Services;

(v) Aerodromes and Ground Aids; and

(vi) the department responsible for air transport development,

(d) the Chief Inspector of accidents or his or her delegate;

(e) the employee of the Authority designated as the Legal Advisor Regulation Development to the Authority or his or her authorised delegate from the department responsible for regulation development;

(f) a Secretary who shall be an employee of the department responsible for flight safety nominated by the Chairperson; and

(g) an officer of the Attorney-General's office nominated by the Attorney-General.

[section 80B inserted by section 27 of Act 8 of 2024]

80C. Functions of Committee

(1) The functions of REDCOM shall be to—

(a) review and recommend to the Minister proposed regulations whether on its own initiative or on referral of the proposed regulations to it by the Minister;

(b) review and recommend to the Director-General proposed orders or temporary regulations made under sections 24C and 24D on its own initiative or on referral of the proposed regulations to it by the Director-General;

(c) develop technical standards for approval by the Director-General;

(d) identify differences between the national aviation legislation and international aviation law and advise the Minister accordingly;

(e) perform any other function with respect to aviation reform in the aviation industry as may be conferred upon the Committee by the Minister.

(2) The Second Schedule shall apply to the procedure to be followed by the Committee at its meetings.

[section 80C inserted by section 27 of Act 8 of 2024]

80D. Filing of differences

(1) The filing of a Category A, B or C difference with Article 38 of the Chicago Convention shall be done by the Minister after consultation with or on the recommendation of REDCOM, and the manner of filing shall be as prescribed in regulations.

[section 80D inserted by section 27 of Act 8 of 2024]

80E. Limitation of liability

(1) No member of the Board, employee or agent of the Authority shall be liable in respect of an action or thing done or omitted in good faith in the exercise of a power or the performance of a duty action or thing in terms of this Act, or in respect of anything that may result therefrom.

(2) The provisions of subsection (1) shall not relieve the Authority of the liability to pay compensation or damages to any person for any injury to him or her, his or her property or any of his or her interests caused by the exercise of any power conferred by this Act.

[section 80E inserted by section 28 of Act 8 of 2024]

80F. Compliance with marshalling signals, interception manoeuvres and order

(1) All Zimbabwean aircrafts must comply with any marshalling signal, interception order or manoeuvre issued by any State.

(2) Any aircraft, when in Zimbabwean airspace, must comply with any marshalling signal, interception order or manoeuvres issued by any State aircraft.

[section 80F inserted by section 28 of Act 8 of 2024]

Part XII – Formation, etc., of Airports Company of Zimbabwe (Private) Limited

[Part XII substituted by section 19 of Act 10 of 2018]

81. Interpretation in Part XII

In this Part—

"**airport**" means any aerodrome of the Authority that is transferred to the Airports Company in terms of this Part and any other aerodrome it may establish or acquire;

"**Airports Company**" means the Airports Company of Zimbabwe (Private) Limited referred to section 82(2);

"**fixed date**" means the date of commencement of the Civil Aviation Amendment Act, 2018 (No. 10 of 2018);

"**securities**", in relation to the Airports Company, includes shares, debentures, bonds and other securities of the Airports Company, whether or not constituting a charge on the Company's assets;

"**transfer date**" means the date or dates referred to in section 84(1).

[section 81 substituted by section 19 of Act 10 of 2018]

82. Formation and objects of Airports Company

(1) Subject to this Part, the Minister is empowered to take such steps as are necessary under the Companies Act *[Chapter 24:03]* to secure the formation of a company limited by shares called the Airports Company of Zimbabwe (Private) Limited, the principal objects of which are the following—

(a) to acquire, establish, develop, maintain, manage, control and operate airports in Zimbabwe; and

(b) to establish, provide and maintain roads, approaches, apparatus, equipment, buidings and facilities in connection with airports; and

(c) to provide any service or facility for the purposes of—

(i) the landing, parking and take-off of aircraft; and

(ii) the handling or clearing of aircraft, the supply of provisions to aircraft, including, but not limited to, food, oils and fuels, and the emergency servicing of aircraft on an apron; and

(iii) the handling of aircraft passengers and their baggage and of cargo at all stages while they are on the premises of an airport, including the transfer of such passengers and their baggage, and of cargo, to and from an aircraft;

(iv) to undertake any other lawful activity at any airport; and

(d) to plan, design, construct, equip, maintain, repair, adapt and modify airports to the standards required or approved by the Authority and the Government of Zimbabwe, for the authorised carriage by air of passengers, baggage, cargo and freight; and

(e) to provide such services as the Board of the Airports Company considers can be properly provided by the Airports Company, and to charge for those services such fees as the Board may determine from time to time; and

(f) to develop identified airports in Zimbabwe as regional air transportation, cargo and passenger hubs, and support airline hub operations; and

(g) to provide safety and security measures for the handling of passengers, baggage, cargo and aircraft, together with the personnel requisite thereto, in accordance with local and international standards and recommended best practices and procedures; and

(h) to carry on the business of importers and exporters, carriers, shipping, forwarding, re-forwarding, clearing and transport agents, bonded warehousemen, storekeepers, publishers, printers and general merchants, and to buy or sell and deal in every merchantable commodity, substance and product; and

(i) to enter into agreements with any person connected with the business of the handling of passengers, baggage, cargo and freighting at international and domestic terminals; and

(j) to establish and manage agencies or branches for the purposes of the Airports Company; and

(k) to do such other things as a body corporate may do, as specified in its Memorandum and Articles of Association.

(2) The Airports Company of Zimbabwe (Private) Limited, a wholly owned company of the Government of Zimbabwe incorporated in terms of the Companies Act *[Chapter 24:03]* on the 20th August, 2014, shall be deemed to have been formed in accordance with this section with effect from the date of its incorporation.

[section 82 substituted by section 19 of Act 10 of 2018]

83. Board of Airports Company

(1) Subject to subsection (2) the Board of the Airports Company shall consist of not more than five members and not more than seven members, appointed by the Minister in consultation with the President.

(2) In appointing the members of the Board, the Minister shall endeavour to secure that members are representative of the different groups or sectors of the community having an interest in aviation services and in particular that at least three members are chosen for their experience or professional qualifications in the areas of aviation, law and accountancy.

(3) A member of the Board shall hold office for a period not exceeding three years.

(4) A member of the Board shall hold office on such terms and conditions of service as the Minister in consultation with the Minister responsible for finance may fix in relation to members generally.

(5) A retiring member of the Board is eligible for reappointment as a member provided that no member may be reappointed for a third consecutive term of office.

(6) The terms and conditions of office of a member of the Board shall not without the member's consent be altered to his or her detriment during the member's tenure of office.

(7) The Minister in consultation with the President shall designate one of the members as chairperson of the Board and another member as vice-chairperson.

(8) The vice-chairperson of the Board shall perform the chairperson's functions whenever the chairperson is for any reason unable to perform them.

(9) The chairperson or vice-chairperson of the Board may at any time resign from office as such by not less than one month's notice in writing to the Minister.

(10) Whenever the office of the chairperson or the vice-chairperson falls vacant, the Minister in consultation with the President shall fill the vacancy within three weeks.

[section 83 substituted by section 19 of Act 10 of 2018]

84. Transfer of certain assets, obligations, etc., of Authority to Airports Company, and valuation thereof

(1) With effect from such date (the "transfer date") as the Minister shall specify by Statutory Instrument (which date may be before or after the fixed date, and which date may be a different date in relation to different assets and liabilities or classes thereof so transferred), the airports and aerodromes transferred to the Authority under Statutory Instrument 193 of 2003, are transferred to and shall vest in the Airports Company, together with—

(a) all the other the assets and rights of the Authority which, before the fixed date, were used or otherwise connected with the functioning of those airports and aerodromes; and

(b) subject to section 89, any liabilities and obligations attaching to the assets and rights or the Authority referred to in paragraph (a); and

(c) such buildings, infrastructure, runways, equipment, vehicles and all attachments relating to the functioning of the airports and aerodromes transferred to the Authority, and such other assets, rights, liabilities and obligations connected with the Authority's functions in relation to airports and aerodromes, as are specified by the Minister, with the approval of the Minister responsible for finance.

(2) The valuation of the assets, rights, liabilities and obligations transferred to the Airports Company under subsection (1) shall be mutually agreed between the Government of Zimbabwe, the Authority and the Airports Company.

(3) All bonds, hypothecations, deeds, contracts, instruments, documents and working arrangements which subsisted immediately before the relevant transfer date in relation to any asset, right, liability or obligation transferred to the Airports Company under this section and to which the Authority was a party shall, on and after that date, be as fully effective and enforceable against or in favour of the Airports Company as if, instead of the Authority, the Airports Company had been named therein.

(4) It shall not be necessary for the Registrar of Deeds to make any endorsement on title deeds or other documents or in his or her registers in respect of any immovable property, right or obligation which passes to the Airports Company under this section, but the Registrar of Deeds, when so requested in writing by the Airports Company, in relation to any particular such property, right or obligation, shall cause the name of the Airports Company to be substituted, free of charge, for that of the Authority on the appropriate title deed or other document or in the appropriate register.

(5) Any cause of action or proceeding which existed or was pending by or against the Authority immediately before the relevant transfer date in respect of any asset, right, liability or obligation that passes to the Airports Company under this section, may be enforced or continued, as the case may be, by or against the Airports Company in the same way that it might have been enforced or continued, as the case may be, by or against the Authority had the Civil Aviation Amendment Act, 2018 (No. 10 of 2018) not been passed.

[section 84 substituted by section 19 of Act 10 of 2018]

85. Employees of Airports Company

(1) All employees of the Authority engaged on duties connected with the functioning of the airports and aerodromes transferred to the Airports Company under section 84, and identified by the Authority in consultation with the Minister and the Airports Company, are deemed to be seconded for a period of twelve months from the fixed date to the Airports Company and for that period shall be subject to the direction and control of the Board of the Airports Company:

Provided that any conflict between a seconded employee's duties to the Airports Company and the Authority shall during that period be determined by the Authority.

(2) After the period of twelve months referred to in subsection (1), or such longer period as the Airports Company and the Minister may agree, the Airports Company may engage, with the consent of the employees concerned, and (unless they agree to less favourable terms) on such terms not less favourable than those enjoyed by them immediately prior to their engagement by the Airports Company, any of the employees who on the fixed date were deemed to be seconded to the Airports Company under subsection (1):

Provided that, for the avoidance of doubt, it is declared that any employee who refuses or is not offered to be engaged by the Airports Company shall remain as an employee of the Authority.

(3) Persons referred to in subsection (2) who are engaged by the Airports Company shall, if they were contributing to a pensions scheme managed by the Authority, be permitted to continue contributing to that scheme.

[section 85 added by section 19 of Act 10 of 2018]

86. Authorised share capital of Airports Company

(1) The initial authorised share capital of the Airports Company shall be the sum of three thousand two hundred United States Dollars ($3 200,00) divided into six thousand four hundred (6 400) ordinary shares of a nominal value of fifty United States cents ($0.50) each.

(2) With the approval of the Minister and the Minister responsible for finance, the Board of the Airport Company may by resolution increase the Company's share capital.

(3) Where the Board of the Company has increased the Company's share capital, the Minister shall cause notice thereof to be published in the *Gazette*.

[section 86 added by section 19 of Act 10 of 2018]

87. Sharing of certain revenues between Airports Company and Authority

(1) Seventy seven point five *per centum* of—

(a) the Airport Departure Fee (commonly known as the passenger service charge) levied in terms of the Civil Aviation (Airport Departure Fee) Regulations, 2003, published in Statutory Instrument 165 of 2003, shall be retained by the Airports Company and the remaining thirty two point five *per centum* shall be paid by airlines directly to the Authority; and

(b) landing and parking fees charged to air operators shall be retained by the Airports Company and the remaining thirty two point five *per centum* shall be paid by the air operators directly to the Authority; and

(c) the fuel levy charged to fuel service providers at the airports and aerodromes of the Airports Company shall be retained by the Airports Company and the remaining thirty two point five *per centum* shall be paid by the fuel service providers directly to the Authority.

(2) The rentals if any, to be charged by the Authority in consideration for the use by the Airports Company of its land long leased to it in terms of Statutory Instrument 193 of 2003 and of any of

the Authority's buildings thereon, shall be as agreed between the Minister, Authority and Airports Company.

[section 87 added by section 19 of Act 10 of 2018 and substituted by section 29 of Act 8 of 2024]

88. Issue of securities in consideration for transfer of assets

(1) In consideration for the transfer of the assets of the Authority to the Airports Company by virtue of section 84, the Airports Company, if so required by the Minister, shall issue such securities as the Minister may direct to—

(a) the Minister or a person nominated by the Minister; and

(b) any person entitled to require the issue of securities following their initial allotment to a person referred in paragraph (a).

(2) Securities issued pursuant to a direction under subsection (1)—

(a) shall be issued or allotted at such times and on such terms and conditions as the Minister may direct; and

(b) shall be regarded as fully paid, and treated for the purposes of the Companies Act *[Chapter 24:03]* as if they had been paid up by virtue of the payment to the Airports Company of their nominal value in cash.

(3) Any dividends or other moneys received by the Minister or any other person on behalf of the State in right of or on the disposal of any security or right acquired by virtue of this section shall be paid into the Consolidated Revenue Fund.

(4) Stamp duty shall not be chargeable under the Stamp Duties Act *[Chapter 23:09]*—

(a) in respect of any security issued in compliance with a direction under subsection (1); or

(b) where any convertible securities were issued in compliance with a direction under subsection (1), in respect of the exercise of the conversion rights attached to any such security.

(5) The Minister shall not—

(a) give a direction under subsection (1) at a time when the Airports Company has ceased to be wholly owned by the State; or

(b) exercise any power conferred on him or her by this section, or dispose of any security issued or allotted to him or her pursuant to this section, or dispose of any right in such security, except after consultation with the Minister responsible for finance.

[section 88 added by section 19 of Act 10 of 2018]

89. Assumption of debts; conversion of loans transferred to Airports Company

(1) In this section—

"transferred loan" means any moneys lent to the Authority by the State, the liability to repay which vests in the Airports Company by virtue of section 84.

(2) The assumption of or succession to the liabilities in respect of domestic and international debts of the Authority and Government of Zimbabwe before the transfer date shall be as agreed between the Minister, Authority, Airports Company and the Minister responsible for finance.

(3) In relation any loans transferred to the Airports Company, the Company, if directed to do so by the Minister, shall issue such securities as the Minister may require to—

(a) the Minister or a person nominated by the Minister; or

(b) any person entitled to require the issue of the securities following their initial allotment to a person referred to in paragraph (a);

up to an amount equal to the amount of any transferred loan.

(4) The issue of securities in terms of subsection (3) shall have the effect of extinguishing by novation the transferred loan in respect of which the securities were issued, up to the nominal value of the securities.

(5) Section 88(2) to (5) shall, with such changes as may be necessary, apply to the issue of securities under this section and to the rights of holders of such securities.

[section 89 added by section 19 of Act 10 of 2018]

90. Minister may give directions to Authority

(1) Notwithstanding anything to the contrary in this Act, the Minister may give the Board of the Authority directions in writing in order to ensure the proper transfer of the assets and liabilities of the Authority to the Airports Company, and the Board shall without delay comply with every such direction.

(2) Without derogating from subsection (1), directions given under that subsection may provide for—

(a) the cessation of all or any of the functions of the Authority and any person in relation to matters for which the Airports Company has become, is or will be responsible in pursuance of its objects referred to in section 82(1);

(b) the termination of any contract entered into between the Authority and any person:

Provided that no such direction shall authorise the Authority to commit an unlawful breach of any such contract;

(c) the production of any report and the provision of any information concerning the conduct of the Authority or the Board of the Authority or anything done by or on behalf of the Authority or the Board of the Authority.

[section 90 added by section 19 of Act 10 of 2018]

91. Airports Company deemed to be licensed

(1) Notwithstanding any other provision of this Act the Airports Company or any subsidiary company formed by it for the purpose shall be deemed to be the holder of an operation licence issued in terms of this Act and authorising the Company or any of its subsidiaries concerned to provide and operate the same operational services and systems that the Authority provided and operated immediately before the fixed date.

(2) The Authority shall without delay cause the relevant licences to be issued to the companies referred to in subsection (1), and those licences may be renewed, amended, suspended or cancelled in all respects as if they had been issued in terms of this Act.

[section 91 added by section 19 of Act 10 of 2018]

First Schedule (Section 6)

Powers of Authority

1. To acquire premises necessary or convenient for the exercise of its functions and, for that purpose, to buy, take in exchange, hire or otherwise acquire immovable property and interests in and rights over such property.

2. To buy, take in exchange, hire or otherwise acquire movable property.

3. To maintain, alter and improve any of its property.

4. To mortgage or pledge any of its assets and, with the Minister's approval, to sell, exchange, let, dispose of, turn to account or otherwise deal with any assets which are not required for the exercise of its functions, for such consideration as the Board may determine.

5. To draw, make, accept, indorse, discount, execute and issue promissory notes, bills of exchange, bills of lading, securities and other negotiable or transferable instruments.

6. To insure against losses, damages, risks and liabilities which it may incur.

7. To make contracts and enter into suretyships or give guarantees, and to modify or rescind such contracts or rescind such suretyships or guarantees.

8. With the Minister's approval—

   (a) to enter into, renew, cancel or abandon arrangements with any government or authority, local or otherwise; and

   (b) to obtain from such government or authority rights, privileges and concessions; and to carry out and exercise such arrangements, rights, privileges and concessions.

9. With the approval of the Minister and the Minister responsible for finance, to establish and administer funds and reserves.

10. With the approval of the Minister and the Minister responsible for finance, to pay such remuneration and allowances and grant such leave of absence and to make such gifts and bonuses and the like to its employees as the Board thinks fit.

11. To provide pecuniary benefits for its employees on their retirement, resignation, discharge or other termination of service or in the event of their sickness or injury and for their dependants, and for that purpose to effect policies of insurance, establish pension or provident funds or make such other provision as may be necessary to secure for its employees and their dependants any or all the pecuniary benefits to which this paragraph relates.

12. With the Minister's approval, to purchase, take in exchange, hire or otherwise acquire land or dwellings for use or occupation by its employees.

13. To construct buildings and other improvements for use or occupation by its employees on land which it has purchased, taken in exchange, hired or otherwise acquired.

14. To sell or let land or dwellings for residential purposes to its employees.

15. With the Minister's approval, to make or guarantee loans to its employees or their spouses for—

   (a) the purchase of dwellings or land for residential purposes; or

   (b) the construction or improvement of dwellings on land which is the property of its employees or their spouses.

16. To provide security in respect of loans such as are described in paragraph 15 by the deposit of securities, in which it may invest such moneys as the Board considers necessary for the purpose.

17. With the approval of the Minister and the Minister responsible for finance, to make loans to its employees —

   (a) for the purpose of purchasing vehicles, tools or other equipment to be used by the employees in carrying out their duties; or

   (b) not exceeding three months salary or wages payable to the employees concerned, for any purpose on such security as the Board thinks adequate.

18. To do anything for the purpose of improving the skill, knowledge or usefulness of its employees, and in that connection to provide or assist other persons in providing facilities for training, education and research.

19. With the Minister's approval, to provide such services as the Board considers could properly be provided by the Authority, and, subject to regulations made in terms of section seventy-nine, to charge for those services such fees as the Board may determine from time to time.

20. With the approval of the Minister and the Minister responsible for finance, to grant such scholarships or bursaries as the Board considers to be in the interests of aviation in Zimbabwe, on such terms and conditions as the Board may fix in any particular case.

21. With the Minister's approval, to engage in, establish, operate or manage schemes for—

    (a) the training of persons engaged in or to be engaged in any activity connected with aviation;

    (b) the development of aviation in Zimbabwe.

22. With the approval of the Minister, to promote, establish or acquire companies, partnerships or other undertakings and, in connection with any such company, partnership or undertaking—

    (a) to manage it and act as its secretary;

    (b) to appoint any person to act on behalf of the Authority as a director or partner, as the case may be, or in any other capacity in relation thereto.

23. Generally, to do anything that is calculated to facilitate or is incidental or conducive to the performance of its functions under this Act or any other enactment.

Second Schedule (Section 80C(2))

[Second Schedule added by section 30 of Act 8 of 2024]

1. **Meetings of committee**

    (1) The REDCOM shall meet at such times and places as may from time to time be determined by the chairperson—

        (a) within four weeks of new or amended SARPs by ICAO; or

        (b) as may be deemed necessary but not less than twice a year.

    (2) The chairperson shall call such meetings at least 14 days in advance.

    (3) The chairperson shall normally preside at every meeting of the committee.

    (4) If the chairperson is absent from a meeting of the committee, the members present shall from among their number elect a person to preside at that meeting.

    (5) The procedures to be followed at meetings of the committee shall be determined by the chairperson.

    (6) The committee shall cause minutes to be kept of every meeting thereof.

    (7) The minutes referred to in subsection (6), shall be kept at the offices of the Director-General.

    (8) The majority of the serving members shall constitute a quorum at any meeting.

    (9) Notwithstanding subsection (1), the Director-General may at any time call an extraordinary meeting of the committee in circumstances which he or she deems necessary and in the public interest.

2. **Subcommittees of the committee**

   (1) The committee may, with the approval of the Director-General establish such subcommittees as it may deem necessary for the performance of its functions.

   (2) The membership of each sub-committee established in terms of subsection (1) shall be unlimited.

   (3) The chairperson of the committee shall appoint a chairperson for each subcommittee so established.

   (4) Subject to the provisions of these regulations, the committee shall, after consultation with the Director-General, determine the procedures to be followed by a subcommittee in the performance of its functions.

3. **Administration**

   All administrative work as well as secretarial work, in connection with the performance of the functions of the committee and any subcommittee shall be carried out by employees of the Authority.

4. **Allowances of committee members**

   The Minister may from time to time fix the allowances for members.

Third Schedule (Section 78A)

Civil penalty orders

[Third Schedule added by section 30 of Act 8 of 2024]

1. **Interpretation in Third Schedule**

   In this Schedule, unless the context otherwise requires—

   "citation clause', in relation to a civil penalty order, is the part of the order in which the Director-General names the defaulter and cites the provision of this Act in respect of which the default was made or is alleged, together with (if necessary) a brief statement of the facts constituting the default;

   "**civil penalty register**" means the register referred to in paragraph 7 ("Evidentiary provisions in connection with civil penalty orders");

   "**continuing default**" means a default in complying with any statutory obligation or duty which is continuous in nature at the time it is detected and of which the remediation consists exclusively or primarily in ceasing to do the action complained of;

   "**corporate defaulter**" means a defaulter which is a company, syndicate or other corporate person (and includes a partnership for the purpose of paragraph 3(3) and (6));

   "**date of issuance**", in relation to the service of a civil penalty order, means the date on which it is served;

   "**defaulter**" means the person on account of whose default a civil penalty order is served, and includes an alleged defaulter;

   "**level**", in relation to a fine, means a level on the standard scale;

   "**officer**", in relation to a corporate defaulter, means a member of its board or other governing body (by whatever name called), and if there is no such board or governing body, any employee or agent of the corporate defaulter acting on behalf of the corporate defaulter;

   "**standard scale**" means the standard scale of fines referred to in section 78A;

   "**penalty clause**", in relation to a civil penalty order, is the part of the order that fixes the penalty to be paid by the defaulter, and "fixed penalty clause" and "cumulative penalty clause" shall be construed accordingly;

"**remediation clause**" in relation to a civil penalty order, is the part of the order that stipulates the remedial action to be taken by the defaulter;

"**show cause clause**" in relation to a civil penalty order is the part of the order that requires the defaulter to show cause why the civil penalty order should not have been served or should be withdrawn.

2. **Power of Director-General to issue civil penalty orders and categories thereof**

(1) Where default is made in complying with any provision of this Act or of any regulations or order made under this Act for which a civil penalty is specified to be leviable, the Director-General may, in addition to, and without derogating from, any criminal or non-criminal penalty that may be imposed by this Act or any other law for the conduct constituting the default, serve upon the defaulter a civil penalty order of the appropriate category specified in subparagraph (2), (3), (4), (5) or (6) or any combination of such orders as the provision in question may allow.

(2) A category 1 civil penalty order provides for—

(a) a combination of a fixed penalty and a cumulative penalty over a period not exceeding ninety days for a specified completed default, of which—

(i) the fixed penalty shall be the maximum amount specified for the level prescribed by or under this Act (not exceeding level 4 if prescribed by regulations); and

(ii) the cumulative penalty, for each day (beginning on the day after the service of a civil penalty order) during which the defaulter fails to pay the fixed penalty under paragraph (a) shall be the maximum amount specified for the cumulative level;

(b) the suspension of the operation of the civil penalty order for a period of 48 hours from the date of its issuance to enable the alleged defaulter to show cause to the Director-General why the order should not have been issued:

Provided that—

(i) if no such cause is shown within that period the order shall be deemed to have been issued with effect from the beginning of such period;

(ii) if within that period it is shown that the order should not have been issued, the Director-General shall withdraw the order and make the appropriate notation of withdrawal in the civil penalty register.

(3) A category 2 civil penalty order provides for—

(a) a cumulative civil penalty for a specified completed but remediable default which—

(i) must be suspended conditionally upon the defaulter taking the remedial action specified in the civil penalty order immediately (that is to say, within forty-eight hours after the civil penalty order is served on him or her);

(ii) upon the civil penalty becoming operative because of noncompliance with the requested remedial action, shall provide for a penalty of 25% of the maximum amount of level one for each day, not exceeding sixty days, during which the defaulter continues to be in default (beginning on the day after the last day on which the defaulter fails to take the remedial action);

(b) the suspension of the operation of the civil penalty order for a period of 48 hours from the date of its issuance to enable the alleged defaulter to show cause to the Director-General why the order should not have been issued:

Provided that—

(i) if no such cause is shown within that period, the order shall be deemed to have been issued with effect from the beginning of such period;

(ii) if within that period it is shown that the order should not have been issued, the Director-General shall withdraw the order and make the appropriate notation of withdrawal in the civil penalty register.

(4) A category 3 civil penalty order provides—

(a) for a combination of a fixed penalty and potentially two cumulative penalties for a specified completed but partially remediable default, of which—

(i) the fixed penalty shall be the maximum amount specified for the level prescribed by or under the Act (not exceeding level 4 if prescribed by regulations); and

(ii) the cumulative penalty—

A. relating to subparagraph (i) shall be a penalty of 25% of the maximum amount of level one for each day (beginning on the day after the service of a civil penalty order) during which the defaulter fails to pay the civil penalty under subparagraph (i); and

B. relating to the taking of the specified remedial action—

I. shall be the maximum amount of the cumulative level for each day, not exceeding sixty days, that the defaulter fails to take the specified remedial action with effect from a specified date; and

II. must be suspended conditionally upon the defaulter taking the remedial action specified in the civil penalty order within the time specified in the order;

(b) the suspension of the operation of the civil penalty order for a period of 48 hours from the date of its issuance to enable the alleged defaulter to show cause to the Director-General why the order should not have been issued:

Provided that—

(i) if no such cause is shown within that period, the order shall be deemed to have been issued with effect from the beginning of such period;

(ii) if within that period it shown that the order should not have been issued, the Director-General shall withdraw the order and make the appropriate notation of withdrawal in the civil penalty register.

(5) A category 4 civil penalty order provides for—

(a) a cumulative penalty for a continuing default which—

(i) must be suspended conditionally upon the defaulter immediately (that is to say, within forty-eight hours after the civil penalty is served on him or her) ceasing the default;

(ii) upon the civil penalty becoming operative because of failure to cease the default immediately, shall be 25% of the maximum amount fixed for level 1 for each day during which the default continues, not exceeding a period of sixty days;

(b) the suspension of the operation of the civil penalty order for a period of 48 hours from the date of its issuance to enable the alleged defaulter to show cause to the Director-General why the order should not have been issued:

Provided that—

(i) if no such cause is shown, within that period the order shall be deemed to have been issued with effect from the beginning of such period;

(ii) if within that period it is shown that the order should not have been issued, the Director-General shall withdraw the order and make the appropriate notation of withdrawal in the civil penalty register.

(6) A category 5 civil penalty order provides for—

(a) acombination of a fixed penalty and a cumulative penalty for a specified continuing default where the time of compliance is of the essence—

(i) of which the cumulative penalty must be suspended conditionally upon the defaulter taking the remedial action specified in the civil penalty order immediately (that is, within 24 hours of the issuance of the order, or a lesser specified time specified in the order);

(ii) which, upon the civil penalty becoming operative because of noncompliance with the requested remedial action, shall provide—

A. a fixed penalty of the maximum amount for level one for not meeting the specified deadline; and

B. a cumulative penalty of the maximum amount of level one for each day, not exceeding sixty days during which the defaulter fails to pay the amount of the fixed penalty specified in—

I. subparagraph (i); and

II. subparagraph A;

(b) the suspension of the operation of the civil penalty order for a period of 24 hours from the date of its issuance to enable the alleged defaulter to show cause to the Director-General why the order should not have been issued:

Provided that—

(i) if no such cause is shown, within that period the order shall be deemed to have been issued with effect from the beginning of such period;

(ii) if within that period it is shown that the order should not have been issued, the Director-General shall withdraw the order and make the appropriate notation of withdrawal in the civil penalty register.

3. **Service and enforcement of civil penalties and destination of proceeds thereof**

(1) References to the Director-General serving upon a defaulter any civil penalty order in terms of this Act, are to be interpreted as requiring the Director-General to serve such order (or such notice) in writing to the defaulter concerned in the manner specified that is to say—

(a) by hand delivery to the defaulter or his or her director, manager, secretary or accounting officer in person (or through an inspector or other person employed in the office of the Director-General, or a police officer), or to a responsible individual at the place of business of the defaulter; or

(b) by delivery through a commercial courier service to the defaulter's place of business or his or her principal office in Zimbabwe or other place of business of the defaulter; or

(c) by electronic mail address furnished by the defaulter to the Director-General in any application or manual furnished by the defaulter to the Director-General within the previous six months; or

(d) if after diligent inquiry service of the civil penalty order by any of the foregoing means has not been made, the defaulter shall be deemed to be notified of the civil penalty order if the Director-General posts a copy of it for fourteen continuous days on the notice board at his

or her office (in which event the civil penalty order shall be deemed to be served on the defaulter on the first date of such posting):

Provided that in this case the Director-General shall also depose in an affidavit to the following facts, namely that—

(i) service of the civil penalty order could not be made by any of the means referred to in subparagraphs (a), (b), (c) or (d);

(ii) the first date on which the copy of the civil penalty order was posted on the notice board of his or her Office;

and the Director-General shall file such affidavit for record.

(2) The Director-General shall not extend the period specified in a civil penalty order for compliance therewith except upon good cause shown to him or her by the defaulter, and any extension of time so granted (not exceeding in any case 30 days) shall be noted by the Director-General in the civil penalty register.

(3) The Director-General may, if the defaulter is a corporate defaulter—

(a) in the same civil penalty order, name the corporate defaulter and every officer of the company, syndicate, other corporate person or partnership concerned as being so liable separately, or issue separate civil penalty orders in respect of the defaulter and each of the officers concerned;

(b) choose to serve the order only upon the corporate defaulter without naming the officers:

Provided that nothing in this subparagraph affects the default liability of officers of the defaulter mentioned in subparagraph (6).

(4) The Director-General may, in the citation clause of a single civil penalty order, cite two or more defaults relating to different provisions of this Act if the defaults in question—

(a) occurred concurrently or within a period not exceeding six months from the first default or defaults to the last default or defaults; or

(b) arose in connection with the same set of facts.

(5) Where in this Act the same acts or omissions are liable to both criminal and civil penalty proceedings, the Director-General may serve a civil penalty order at any time before the commencement of the criminal proceedings in relation to that default, that is to say at any time before—

(a) summons is issued to the accused person for the prosecution of the offence; or

(b) a statement of the charge is lodged with the clerk of the magistrates court before which the accused is to be tried, where the offence is to be tried summarily; or

(c) an indictment has been served upon the accused person, where the person is to be tried before the High Court; as the case may be, but may not serve any civil penalty order after the commencement of the criminal proceedings until after those proceedings are concluded (the criminal proceedings are deemed for this purpose to be concluded if they result in a conviction or acquittal, even if they are appealed or taken on review). (For the avoidance of doubt it is declared that the acquittal of an alleged defaulter in criminal proceedings does not excuse the defaulter from liability for civil penalty proceedings).

(6) Every officer of a corporate defaulter mentioned in the civil penalty order by name or by office, is deemed to be in default and any one of them can, on the basis of joint and several liability, be made by the Director-General to pay the civil penalty in the event that the defaulter does not pay.

(7) Upon the expiry of the sixty-day period within which any civil penalty order of any category must be paid or complied with, the defaulter shall be guilty of an offence and liable to a fine not exceeding level 3 or to imprisonment for a period not exceeding one year or to both (in the case of a

corporate defaulter, every one of its officers is liable to the penalty of imprisonment, and to the fine if the corporate defaulter fails to pay it).

(8) The amount of any civil penalty shall be payable to the Authority and shall be a debt due to the Authority and may be sued for in any proceedings in the name of the Authority in any court of competent civil jurisdiction.

(9) Proceedings in a court for the recovery of a civil penalty shall be deemed to be proceedings for the recovery of a debt as if the defaulter had acknowledged the debt in writing.

(10) If the Director-General in terms of subparagraph (8) desires to institute proceedings to recover the amounts of two or more civil penalties in any court of competent civil jurisdiction, the Director-General may, after notice to all interested parties, bring a single action in relation to the recovery of those penalties if the orders relating to those penalties—

(a) were all served within the period of twelve months preceding the institution of the proceedings; and

(b) were served—

(i) on the same defaulter; or

(ii) in relation to the same default or set of defaults, whether committed by the same defaulter or different defaulters; or

(iii) on two or more defaulters whose registered offices are in the same area of jurisdiction of the court before which the proceedings are instituted.

(11) Unless the Director-General has earlier recovered in civil court the amount outstanding under a civil penalty order, a court convicting a person of an offence against subparagraph (7), may on its own motion or on the application of the prosecutor and in addition to any penalty which it may impose give summary judgment in favour of the Director-General for the amount of any outstanding civil penalty due from the convicted defaulter.

4. **Limitation on issuance and enforcement of civil penalty orders**

(1) No civil penalty order may be issued more than twelve months from the date when the default or alleged default occurred or ceased to occur.

(2) A single civil penalty order may be served in respect of two or more defaults committed by the defaulter within a single period not exceeding six months, but if the aggregate of such defaults results in the defaulter becoming liable to a penalty or combined penalties in excess of the equivalent of one hundred and twenty thousand dollars, the Director-General may select one or any combination of those defaults which will not result in the defaulter becoming so liable, while reserving the right to serve a second or further additional civil penalty orders in respect of the defaults not so selected if the defaulter does not comply with the first civil penalty order.

5. **Civil penalties to be paid in foreign currency by foreign registered defaulters**

A foreign registered defaulter shall pay any monetary penalty under a civil penalty order in United States dollars or another foreign currency at the official exchange rate prevailing on the day the civil penalty order is issued.

6. **When hearings on question whether to serve civil penalty orders may be held**

(1) If, in response to a show cause clause, an alleged defaulter satisfies the Director-General, that it is not possible within 24 or 48 hours (as the case may be) to demonstrate that the civil penalty order should not have been issued due to a material dispute of fact, or because the alleged default in question was not wilful or was due to circumstances beyond the alleged defaulter's control,

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the Director-General shall afford the alleged defaulter an opportunity to be heard by making oral representations before the Director-General, for which purpose—

(a) no later than 96 hours after the issuance of the civil penalty order, the alleged defaulter must furnish to the Director-General an affidavit sworn by him or her giving reasons to show that the civil penalty order should not have been issued due to a material dispute of fact, or because the alleged default in question was not wilful or was due to circumstances beyond the alleged defaulter's control;

(b) within a reasonable period from the receipt of an affidavit referred to in subparagraph (a) the Director-General may serve copies of the affidavit on any person who, in the Director-General's opinion, is affected by or may be a party to the default, together with an invitation to the parties to attend at the meeting to be presided over by the Director-General (giving particulars of its time and venue) to enable the parties to make oral and written representations at that meeting on the question whether the civil penalty order should have been issued to the alleged defaulter and whether it should be issued to some other person or not issued at all:

Provided that in such invitation referred to in subparagraph (b) or at the meeting the Director-General may restrict the parties to submitting written representations only, before or no later than 48 hours after the conclusion of the meeting.

(2) The following provisions apply to every hearing in connection with the issuance of a civil penalty order—

(a) if the alleged defaulter fails to attend at the hearing the Director-General will generally decide the issue against him or her and proceed to issue the civil penalty order, unless doing so, given the specific facts and circumstances of the case, would be contrary to this Act or result in injustice;

(b) the alleged defaulter bears the burden of showing on a balance of probabilities that the civil penalty order should not have been issued due to a material dispute of fact, or because the alleged default in question was not wilful or was due to circumstances beyond the alleged defaulter's control:

(c) at the conclusion of the hearing Director-General may—

(i) in the presence of the parties (if any) at the meeting announce his or her decision verbally whether or not to issue a civil penalty order, and if so to whom, and if the Director-General decides to issue the civil penalty order the Director-General shall do so within twenty-four hours;

(ii) cancel the civil penalty order or re-issue it with effect from the date of his or her decision on the same or another defaulter, or re-issue it with effect from the date on which it was initially issued if the Director-General finds that the defaulter's objections to its issuance were baseless, vexatious or frivolous:

Provided that the Director-General may defer making a decision by no more than 48 hours after the conclusion of the hearing and give notice of his or her decision, and the reasons for it (together with the civil penalty order, if any), to the alleged defaulter found to be liable for the civil penalty, and post a copy of the decision together with the civil penalty order, if any) and the reasons for it on the public notice board of the Director's office.

(3) An alleged defaulter or substituted alleged defaulter who wishes to appeal in terms of section 78 against the Director-General's decision in terms of subparagraph (2)(d) must—

(a) lodge (together with the prescribed fee, if any) an appeal in writing with the Director-General concerned, and copy it to the Minister, no later than two working days after such person has received notification of the decision under the proviso to subparagraph (2)(d); and

(b) incorporate in the appeal grounds justifying why the Director-General's decision should be set aside and what decision ought to be substituted for it; and thereupon the Director-General shall, without delay, transmit the appeal to the Secretary together with any report the Director-General may wish to attach thereto justifying the grounds upon which the Director-General based his or her decision.

(4) The effect of lodging an appeal under subparagraph (3) shall be to suspend the decision appealed against until the appeal is determined by the Minister.

(5) Upon receiving an appeal in terms of subparagraph (3) the Minister shall promptly (and in any event no later than seven working days of receiving it)—

(a) dismiss the appeal by upholding the decision of the Director-General;

(b) refer the decision back to the Director-General for reconsideration (whether with or without directions on how the decision is to be reconsidered, including a direction to the Director-General to investigate the matter further and make a further report and recommendations) on any one or more of the following grounds—

(i) allowing extraneous or irrelevant considerations to affect the decision; or

(ii) failure to take into account relevant considerations in arriving at the decision; or

(iii) any material mistake of fact or law that tainted the decision;

(c) uphold the appeal and substitute any other decision for that of the Director-General, if the Minister finds that there was interest in the cause, bias, malice or corruption on the part of any person involved in making or contributing to the decision:

Provided that the Minister shall not make a finding on this ground without affording the Director-General an opportunity to respond to the proposed finding.

(6) Any alleged defaulter who is aggrieved by a decision of the Minister under subparagraph (5), may seek a review of such decision by the Administrative Court within seven days after the date of its notification to the appellant, whereupon the court may do any of the things the Minister is empowered to do under subparagraph (5):

Provided the taking of a decision on review under this subsection shall not suspend the decision sought to be reviewed until the review is determined by the Administrative Court.

(7) In the event of any inconsistency between this paragraph and section 78, this paragraph shall prevail.

7. **Evidentiary provisions in connection with civil penalty orders**

(1) For the purposes of this Schedule the Director-General shall keep a civil penalty register wherein shall be recorded—

(a) the date of service of every civil penalty order, the name and the physical or registered office address of the person upon whom it was served, the civil penalty provision in relation to which the defaulter was in default, and the date on which the civil penalty order was complied with or the penalty thereunder was recovered as the case may be;

(b) if the alleged defaulter responded to the show cause clause in the civil penalty order with the result that—

(i) the order was cancelled because it should not have been issued, the fact and the date of such cancellation; or

(ii) a hearing was held in accordance with paragraph 5, then—

A. a record or an adequate summary of any representations made at the hearing by way of an entry or cross-reference in, or annexure to, the register (and if recorded by way of annexure or cross-reference, the representations must be

preserved for a period of at least ten years from the date when they were made to the Director-General);

B. a record of the outcome of the hearing, that is to say, whether or not the civil penalty order was cancelled, and if not the date from which it was to have effect and whether a different defaulter was served with it.

(2) A copy of—

(a) any entry in the civil penalty register, and of any annexure thereto or record cross-referenced therein, authenticated by the Director-General as a true copy of the original, shall on its mere production in any civil or criminal proceedings by any person, be *prima facie* proof of the contents therein; or

(b) any civil penalty order that has been served in terms of this Act, authenticated by the Director-General as a true copy of the original, shall on its mere production in any civil or criminal proceedings by any person, be *prima facie* proof of the service of the order on the date stated therein upon the defaulter named therein, and of the contents of the order.

Fourth Schedule (Section 78A)

Standard scale of fines (for civil aviation)

[Fourth Schedule added by section 31 of Act 8 of 2024]

Level	Monetary amount US$	Imprisonment
Cumulative level	**2% of level 1**	
1	5 000	One year
2	10 000	Two years
3	25 000	Three years
4	100 000	Not exceeding 5 years
5	200 000	Not exceeding 10 years.